

A.P. Farmers Management of Irrigation Systems (Conduct of Elections) Rules, 2018

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State of Andhra Pradesh - Act

A.P. Farmers Management of Irrigation Systems (Conduct of Elections) Rules, 2018

ANDHRA PRADESH

India

A.P. Farmers Management of Irrigation Systems (Conduct of Elections) Rules, 2018

Rule A-P-FARMERS-MANAGEMENT-OF-IRRIGATION-SYSTEMS-CONDUCT-OF-ELECTIONS-RULES-2018 of 2018

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A.P. Farmers Management of Irrigation Systems (Conduct of Elections) Rules, 2018

Published vide Notification No. G.O. Ms.No.20, Water Resources (CADA), 8.2.2019

Last Updated 16th July, 2019

Notification No. G.O. Ms.No.20, Water Resources (CADA). - In exercise of the powers conferred by section 43 read with sections 2,3,4,6,8,12,14,15,17,18,21,22,24,25,28 & 38 of the Andhra Pradesh Farmers Management of Irrigation Systems Act, 1997 (Act

11 of 1997

), as amended from time to time and in supersession of the orders issued in G.O. Ms. No.47, Irrigation &CAD (CAD IV) Department, Dated:04.04.2003, and G.O. Ms No 33 Irrigation &CAD (CAD IV) Department, Dated: 11.03.2005 and as

subsequently amended, the Governor of Andhra Pradesh hereby makes the following Rules to the elections to the Water Users Associations and other bodies.

1.

Short title.

- These rules may be called as the Andhra Pradesh Farmers Management of Irrigation Systems (Conduct of Elections) Rules, 2018.

2.

Definitions.

- In these Rules, unless the context otherwise requires,

1. "Act" means the Andhra Pradesh Farmers Management of Irrigation Systems Act, 1997 and as amended by Act No. 4 of 2018.

2. "Authorised Officer" means an officer authorized by the District Collector not below the rank of a Deputy Tahsildar.

3.

"Competent Authority" means the officer appointed under Section 21 of the Act.

4.

"Election Authority" means the Commissioner of the Command Area Development Authority, or any other officer having jurisdiction specified in Rule 1.1 of Chapter.

5.

"Farmers Organisation" means Water Users Association at the primary level, Distributory Committee at the secondary level and Project Committee at the project level.

6.

"Form" means a form appended to these rules.

7.

"junior Civil judge", "Subordinate judge" and "District judge" mean the Junior Civil Judge, the Subordinate Judge and the District Judge appointed under the Andhra Pradesh Civil Courts Act, 1972.

8.

"Lower reaches" means the ayacut of a Water Users Association covered by the remaining 50 percent of the number of the Territorial Constituencies.

9.

"Notice" means notice appended to these rules.

10.

"Upper reaches" means the Ayacut comprising of 50 percent of the number of Territorial Constituencies which are adjacent to and nearby to the entry point of the water course based on the hydraulic particulars within the jurisdiction of the Water Users Association.

11.

"Venue" means the place notified for conducting Extraordinary General Body meeting for selection/election of the representatives of the Farmers Organisations.

12.

"Voter" means a member of the Water Users Association having 18 years and above age, but not co-opted members under Section 3(4) of the Act, in case of tenant farmers, only such farmers whose tenancy is recorded in revenue registers for a period not less than one crop year.

13.

"Voting slip" means a piece of paper in 1/4th of A4 size i.e., about 10.5 cm x 4.8 cm distributed to mark the choice of voter during the selection/election process having name and number of Water Users Association and signature of Polling Officer on back side.

14.

"Voting box" means a container to receive the voting slips from the voters.

15.

The words and expressions used but not defined in these Rules shall have respective meanings assigned to them in the Act.

Chapter I

Administrative machinery

1.

1. Election Authority. - The Commissioner, Command Area Development Authority shall be the Election Authority for the purpose of conducting elections under Section 33 of the Andhra Pradesh Farmers Management of Irrigation Systems Act, 1997.

1.2

District Election Authority. -(1) The District Collector shall be the District Election Authority. The functions of the Election Authority under these Rules may also be performed by the District Election Authority within his jurisdiction, unless specifically otherwise provided

(2)

Subject to the general superintendence, direction and control of the Election Authority the District Election Authority shall be responsible for conduct, coordination and supervision of all works in connection with holding of elections to the Territorial Constituencies President and Vice-President of Water Users Associations, President and Vice-President of Distributory Committees; and the Chairman and Vice-Chairman of Project Committees.

(3)

The Joint Collector of the District shall be the Additional District Election Authority.

(4)

The Revenue Divisional Officer or the Sub-Collector, as the case may be, in the District shall be the Deputy District Election Authority.

(5)

The Additional District Election Authority and the Deputy District Election Authority shall perform such of those functions as may be assigned from time to time to them, by the District Election Authority.

(6)

The District Election Authority may authorize in writing, the Additional District Election Authority or the Deputy District Election Authority to exercise in any local area in the District in regard to any Water Users Association or Distributory Committee or Project Committee in that area, any of the powers vested in him under these Rules.

1.3

Election Officer. - (1) For conduct of elections to fill the posts in Farmers Organizations, the District Election Authority shall designate, by order an officer as Election Officer, as specified in Table 1-1

Table 1-1 : Election Officers in Farmers

Organisation

Election to the post in Farmers Organization

Cadre of the officer to be designated as

Election Office

(a)

Water Users Association of Major, Medium and Minor Irrigation Systems

A Gazetted Officer of the State Government or of local authority, not below the rank of Tahsildar.

(i)

Member of Territorial Constituency;

(ii)

President; and

(iii)

Vice-President

(b)

Distributory Committee of Major Irrigation Systems

An officer not below

the rank of Revenue Divisional Officer or

Deputy Director or Executive Engineer.

(i)
President; and

(ii)
Vice-President

(c)
Project Committee of Medium Irrigation Systems

An officer not below
the rank of Revenue Divisional Officer or
Deputy Director or Executive Engineer.

(i)
Chairman; and

(ii)
Vice-Chairman

(d)
Project Committee of Major Irrigation Systems

An officer not below
the rank of Joint Director or
Superintending Engineer.

(i)
Chairman; and

(ii)
Vice-Chairman

Provided that, in case the Officers mentioned above are not available, other suitable Officers may be appointed for the above purpose.

(2)
It shall be the general duty of the Election Officer at any election to do all such acts and things as may be necessary for conducting the elections, in the manner provided under the Act, Rules or Orders made thereunder for any Farmers Organisation.

(3)
The Election Officer appointed shall conduct the elections in the Farmers Organization with the assistance of the Assistant Election Officers and such other polling personnel appointed as per necessity by the District Election Authority in a fair and peaceful manner.

Explanation. - (a) Wherever the ayacut of a Farmers Organization spreads over more than one District, the District Collector of such District in whose jurisdiction the major extent of ayacut lies or as specified by the Election Authority shall be the District Election Authority for conducting elections to such Farmers Organizations.

(b)
In case of any doubt or dispute, the decision of the Election Authority shall be final.

1.4
Assistant Election Officers. - 1. The District Election Authority may appoint one or more persons as Assistant Election Officers to assist the Election Officer, as may be necessary, for conduct of elections
Provided that every such person shall be an officer of the State Government or of a local authority.

2. Every Assistant Election Officer shall, subject to the control of the Election Officer, be competent to perform all or any of the functions of the Election Officer.
Provided that no Assistant Election Officer shall perform any functions of the Election Officer, related to the scrutiny of nominations, unless the Election Officer specifically authorizes him.

1.5
Polling Officers. - (1) For Water Users Associations in Irrigation systems : -

(a)
The District Election Authority or any Officer authorized by him shall ordinarily appoint a Polling Officer for every Territorial Constituency of a Water Users Association and such number of Polling Assistants as he thinks necessary, depending on the number of voters in a particular Territorial Constituency

Provided that if a Polling Assistant is absent, the Polling Officer may appoint any person who is present at the venue other than a person who has been employed by or acting on behalf of a contestant, or has been otherwise working for a contestant in the election, to be the Polling Assistant and inform the Election Officer accordingly.

(b)

A Polling Assistant if appointed shall, if so directed by the Polling Officer, perform all or any of the functions of a Polling Officer under these Rules;

(c)

If a Polling Officer owing to illness or due to unavoidable circumstances abstains himself, from the venue, his functions shall be performed by such Polling Assistant as authorized by the Election Officer to perform such functions during absence;

(d)

It shall be the general duty of the Polling Officer at the venue to keep and maintain public order thereat and to see that the proceedings of the Extraordinary General Body meetings are conducted in a fair and peaceful manner.

(e)

The prime responsibility of (i) calling for nominations, (ii) preparation of list of nominations, (iii) scrutiny of nominations and (iv) preparation of final list of contestants rests with Election Officer only.

(f)

However, as this entire process has to be completed simultaneously on the same time for all Territorial Constituencies of a Water Users Association, Polling Officers and Polling Assistants shall assist the Election Officer to perform these functions in their Territorial Constituency on his behalf.

(g)

While the polling and counting process shall be organized by all Polling Officers, the announcement of results and issue of certificate of election shall be done by the Election Officer only.

(2)

For Distributory Committees or Project Committees. - The District Election Authority or any Officer authorized by him may appoint one or more Polling Officers as may be necessary to assist the Election Officer for conducting elections in the Distributory Committees or the Project Committees.

1.6

Remuneration to polling personnel. - The District Election Authority or any Officer authorized by him may pay the remuneration to the polling personnel for their services in connection with the Elections in Farmers Organizations, as fixed by the Government.

1.7

Venues. - (1) The District Election Authority or any officer authorized by him shall publish a list of Venues for conducting Extraordinary General Body meetings for the Territorial Constituencies of Water Users Associations in Form 13-A for all Irrigation Systems notified. This list shall be displayed on the notice board of the concerned Irrigation Offices, Gram Panchayat, Mandal Parishad and Office of the Tahsildar.

(2)

After receiving the objections if any, the District Election Authority or any Officer authorized by him shall consider all such objections within two days and finalise the list of venues and publish in Form 13-B. The lists so finalized shall be displayed on the notice board of concerned Irrigation Offices, Gram Panchayat, Mandal Parishad and Office of the Tahsildar etc.,

(3)

The venues identified for this purpose shall be easily accessible and located preferably within the town or village as far as possible;

(4)

Venue for conducting Extraordinary General Body meeting for all Territorial Constituencies in a Water Users Association shall be one premises only.

1.8

Power of Government to remove difficulty. - If any question arises as to interpretation of these Rules, otherwise than in connection with an enquiry held under the Rules, for the decision on disputes as to the validity of an election or in removing any difficulty in giving effect to the provisions of the Act and Rules, the question shall be referred to the

Government, whose decision thereon shall be final.

Chapter 2

General Guidelines in formation of Farmers Organisations

2.

1. Extraordinary General Body Meeting of Farmers Organisations. - (1) The selection or election of members of the Managing Committee of all Farmers Organisations shall be organised by convening Extraordinary General Bodies of the respective Farmers Organisations as per the schedule notified by the respective Election Authorities in Forms 1-A, 2-A and 3-A in respect of Water Users Associations, Forms 1-B, 2-B and 3-B in respect of Distributory Committees and 1-C, 2-C and 3-C in respect of Project Committees.

(2)

The farmers who wish to contest for any post in Farmers Organisation shall have no dues of water tax payable to Government. The contesting candidates who are in the fray shall produce No Due Certificate of water tax from the concerned revenue authorities before submitting their nominations.

2.2

Managing Committee of Water Users Association. - (1) The Territorial Constituencies shall be a minimum of six and maximum of twelve in a Water Users Association and all the selected Territorial Constituency members in a water users area constitute the Managing Committee of a Water Users Association.

(2)

Territorial Constituency wise voters list shall be prepared for selection of Territorial Constituency members in the first instance, finalised and published after considering the objections received, if any, as per the procedure laid down in the Rules of the Act.

2.3

Selection of Managing Committee. - Sub-section (5) of Section 4 of the Act, stipulates that the District Collector shall cause arrangements for the selection of Managing Committee consisting of one member from each of the Territorial Constituency of a water users area by a simplified procedure of selecting their representatives by consensus. Where there is no consensus, it shall be by simplified procedure like show of hands or finally distributions of slips.

2.4

Right to vote. - (1) Every person whose name is entered in the voters list of a Territorial Constituency shall be entitled to select his representative in that particular Territorial Constituency;

(2)

No person shall have right to select his representative in more than one Territorial Constituency of the same Water Users Association;

(3)

No person shall have any right in the same Territorial Constituency more than once; notwithstanding the fact that his name might have been registered in that voters list more than once, erroneously;

(4)

All voters who are entitled to participate in the process of selecting their representatives shall do so in person as per the time schedule at the venue provided for them under these Rules.

2.5

Facilities to women voters. - (1) Separate seating arrangements shall be made for women voters at the venues. In case, where there are more number of women voters at any particular venue, the Polling Officer may appoint a woman to serve as an attendant to assist women voters and also to assist Polling Officer generally in respect of women voters and in particular to help in searching any women voters, in case it becomes necessary.

(2)

Any other facilities may be provided to women voters as directed by the District Election Authority.

2.6

Identification of voters. - (1) The Polling Officer should verify the voters list and examine the person with reference to his identity such as Pattadar Pass Book or Identification Document issued by the Village Revenue Officer concerned or any other document issued by the authority competent to identify confirming that he is a farmer entitled to participate in that particular Extraordinary General Body Meeting of Territorial Constituency.

(2)

The Polling Officer shall request the voters of that Territorial Constituency to sit in rows for men and women separately for selection of their representative. If any person or persons not belonging to that Territorial Constituency are found sitting before commencement of the selection of their representative, then the Polling Officer shall ask such persons to leave the hall. In case any such person is still found later, he shall be handed over to the police for legal action.

(3)

In case the Territorial Constituency member is selected through consensus such Territorial Constituency will be encouraged with the grant of incentive that may be announced by the Government from time to time.

2.7

Illiterate, blind and infirm voters. - In case of illiterate, blind and infirm, very old voters and those suffering with such problems which make them unable to mark their choice on the voting slip, the Polling Assistant shall assist them in this regard duly ensuring the secrecy of their choice.

2.8

Selection or Election of Territorial Constituency member and President and Vice-President of Water Users Associations.

- The detailed procedure for formation of Managing Committee of the Water Users Association i.e., members of Territorial Constituency, President and Vice-President, is given in Chapter 4 of this manual.

2.9

Election of President and Vice-President of a Distributory Committee. - The detailed procedure for electing President and Vice-President of the Distributory Committee of Major Irrigation Systems is given in Chapter 5 of this manual.

2.10

Election of Chairman and Vice-Chairman of a Project Committee. - The detailed procedure for electing Chairman and Vice-Chairman of the Project Committee of Major and Medium Irrigation Systems is given in Chapter 6 of this manual.

The following are the general guidelines to all the Election Officers in-charge of formation of Farmers Organisations:

2.11

Voting Slips

Rejection of voting slips

(1)

Subject to such general or special directions if any, as may be given by the Election Authority or the District Election Authority in this behalf, all the voting slips shall be counted and accepted except under the conditions given below

(2)

The Election Officer shall reject a voting slip, -

(a)

If it bears any mark or writing by which the voter can be identified; or

(b)

If it bears no mark at all to indicate the choice of the voter;

(c)

If mark given on it is in favour of more than one candidate; or

(d)

If the mark indicating the choice thereon is placed in such a manner as to make it doubtful, as to which candidate the choice has been given; or

(e)

If it is a spurious voting slip; or

(f)

If it is so damaged or mutilated that its identity as a genuine voting slip cannot be established; or

(g)

If it does not bear the signature of Polling Officer as per rules.

Provided that, where the Election Officer is satisfied that any such defect as is mentioned in clause (g) has been caused by any mistake or failure on the part of a Polling Officer or Polling Assistant, the voting slip shall not be rejected merely by the reason of such defect.

Provided further that, a voting slip shall not be rejected merely on the ground that the mark indicating the vote is indistinct or made more than once, if the intention of the voter is for a particular candidate clearly appears from the way the paper is marked.

(3)

Before rejecting any voting slip, the Election Officer shall allow the contesting candidates present, a reasonable opportunity to inspect the voting slip but shall not allow them to handle it or any other voting slip.

(4)

The Election Officer shall endorse on every voting slip, which he rejects the word "rejected" and the grounds of rejection in abbreviated form in his own hand and shall sign such endorsement.

(5)

All voting slips rejected under this Rule shall be bundled together.

(6)

Every voting slip which is not rejected under this Rule shall be counted as one valid vote.

(7)

The decision of the Election Officer as to the validity of a voting slip shall be final subject to scrutiny only by an election petition.

(8)

The Election Officer shall ensure that the total number of voting slips placed in the voting box shall not exceed the total number of voting slips signed by him. If some voters refuse to express their choice, they can return empty slips. The Election Officer shall finalise the result as per the actual number of voting slips received in the voting box.

(9)

After completion of counting of all voting slips, the Election Officer shall make the entries in a result sheet in Form 8 and announce the result by declaring the name of the candidate who secured the highest number of votes as selected or elected and record the particulars in Form 9-A.

(10)

Once the counting of votes and declaration of successful candidates is completed, the Election Officer shall record the list of candidates elected in Form 9-B.

(11)

If the number present fall short of the quorum required at appointed time, the Election Officer shall wait at the venue for 30 minutes and if there is no change in the situation, the Election Officer shall declare the posts as casual vacancies until the elections are held for these posts under Section 15 of the Act and record in Form 9-C and the same shall be submitted to the District Election Authority.

(12)

The Election Officer shall issue the election certificates to all those candidates who are elected as members of the Territorial Constituencies, President and Vice-President of Water Users Association; President and Vice-President of Distributory Committee; Chairman and Vice-Chairman of the Project Committee, in Form 10 immediately after completion of the proceedings and the acknowledgement shall be obtained from the successful candidates.

2.12

Recount of voting slips. - (1) After such announcement has been made under sub-rule (10) of Rule 2.11, a candidate may apply in writing to the Election Officer for recounting of the voting slips either wholly or in part stating the grounds on which he demands such recount.

(2)

On such an application being made, the Election Officer shall decide the matter and may allow the application in whole or in part or if it appears to him to be frivolous or unreasonable, he may reject it outright.

(3)

Every decision of the Election Officer under sub-rule (2) shall be in writing and contain the reasons there for;

(4)

If the Election Officer under sub-rule (2) decides to allow a recount of the voting slips either wholly or in part, he shall

(a)

arrange for the recounting in accordance with the Rules;

(b)

amend the result sheet in Form 8 to the extent necessary after such recount, attest; and

(c)

announce the amendments so made by him in Form 9-B.

(5)

After the total number of voting slips received in favour of each candidate has been announced under sub-rule (4), the Election Officer shall complete and sign the result sheet in Form 8 and no application for a further or second recount shall be entertained thereafter.

2.13

Closing of used voting slips. - The valid voting slips of each contesting candidate and the rejected voting slips shall thereafter be bundled separately and the several bundles made up in to a separate packet which shall be securely closed under the signature of the Polling Officer and the packets so closed shall have following particulars superscribed.

(a)

Name of Farmers Organization

(b)

Village/Town

(c)

Mandal

(d)

Number of Territorial Constituency (for Territorial Constituency elections)

(e)

Date of counting

2.14

Equality of voting slips. - If, after the counting of voting slip is completed, an equality of voting slips is found to exist among any of the candidates and the addition of one voting slip will lead to any of those candidates being declared elected, the Election Officer shall forthwith decide among those candidates by lot, and proceed as if the candidate on whom the lot falls had received the additional voting slip.

2.15

Disposal of voting slips. - (1) The Election Officer shall, after declaring the results, hand over the following records to the officer authorized by the District Election Authority:

(a)

Registers, other records like forms etc.,

(b)

All the packets of voting slips, whether counted, rejected or cancelled. These packets shall not be opened and their contents shall not be inspected or produced except under the orders of an authority competent to decide election disputes.

(2)

The Officer so authorized shall retain packets as given in sub-rule (1) for a year and shall then, unless otherwise directed by the authority competent to decide election disputes, cause them to be destroyed, except the documents which shall be kept for Five years, i.e., original copies of Form 8 i.e., result sheet and Form 10 i.e., declaration of results in stitched volumes for all elections in Farmers Organisation.

2.16

Restriction against holding one post in Water Users Associations. - If any person gets elected as the member of Territorial Constituency from more than one from different Water Users Associations, he can hold only one Territorial Constituency post of his choice resigning the other posts.

2.17

Videography. - The entire selection process will be recorded through videography. Before commencement of the proceedings, it shall be demonstrated to the voters present that the non-rewritable electronic device used for videography of the General Body proceedings is blank. During the proceedings also, the Polling Officer shall ensure that the main context and events are clearly captured in the video. At the end of the General Body meeting, the electronic device/memory card used shall be preserved securely with signatures of the Polling Officer and two other witnesses. This shall be used as a legal evidence to be produced before the Authority empowered to settle any disputes.

Explanation. - The videography taken should not capture the choice of the voters on the voting slips to ensure secrecy of voter's choice.

Chapter 3

Adjournment of Extraordinary General Body Meetings

3.

1. Special election programme. - Notwithstanding anything contained in these Rules, where the conduct of Extraordinary General Body Meeting is interrupted or the schedule has to be altered on account of the orders of any Court of Law or for other valid reasons to be recorded in writing, it shall be competent for the District Election Authority either generally or in respect of a specified Farmers Organisation, to alter the schedule as he deems fit in the circumstances of the case and the Election Officers shall give effect to the same.

3.2

Power of Election Officer to fix dates etc., in certain cases. - Notwithstanding anything contained in these Rules, the Government or the Election Authority may empower the Election Officer to fix dates and period other than those specified or fixed by or under these Rules for all or any of the stages of Extraordinary General Body meetings and election proceedings connected therewith.

3.3

Adjournment of Extraordinary General Body Meetings. - (1) Where (a) the proceedings at any venue are seriously interrupted or obstructed by any riot or open violence or otherwise or

(b)

where a large number of voters are unable to attend the venue by reason of an act of God, such as flood or fire etc., the Election Officer shall stop the proceedings, pending receipt of the orders of the District Election Authority. The fact that the process has been so stopped shall be immediately announced by the Election Officer to the persons present at the venue.

(2)

Where the Election Officer stops Extraordinary General Body meeting under sub-rule (1), he shall forthwith make a full report of the circumstances to the District Election Authority.

(3)

The District Election Authority shall thereupon order for conduct of Extraordinary General Body meetings a later date within seven days.

(4)

Any order passed under sub-rule (3) shall give fresh schedule of conducting Extraordinary General Body meetings duly ensuring wide publicity as given for the original Extraordinary General Body meetings.

3.4

Fresh Extraordinary General Body Meeting after adjournment. - Where an order is passed under of sub-rule (3) under Rule 3.3 for convening Extraordinary General Body meeting, the District Election Authority may proceed afresh and appoint Election Officer and Polling personnel necessary.

3.5

Disturbances during Extraordinary General Body Meetings. - (1) If there are any disturbances caused during the process of selection or election of the representatives for the Farmers Organisations during the Extraordinary General Body Meeting; making it difficult to the Election Officer to complete the process in a fair and peaceful manner, the Election Officer shall forthwith stop the further process and report the matter to the District Election Authority.

(2)

Thereupon, the District Election Authority after taking all material circumstances into account, may direct that the proceedings of the Extraordinary General Body Meetings be stopped, and the election be postponed.

Chapter 4

Formation of the Water Users Associations in all Irrigations systems (Major/Medium/Minor)

Important Note. - The Rules contained in Chapter 2 shall form part and parcel of this chapter to the extent they are relevant to this Chapter.

4.

1. Public notice of convening Extraordinary General Body Meetings for formation of Water Users Associations. - (1) Public notice by Election Authority. - The Election Authority shall, subject to such directions as may be issued by the Government in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications publish in Form 1-A, in the Andhra Pradesh Gazette, call upon, on such date or dates as may be specified therein, to convene Extraordinary General Body Meetings for formation of water Users Associations by selection or

election of the members of the Territorial Constituencies, president and Vice-President of the Water Users Associations in Irrigation Systems in accordance with the provisions of the Act, Rules and Orders made there under.

(2)

Public notice by District Election Authority. - (a) the District Election Authority shall, subject to such directions as may be issued by the Election Authority, in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications, publish in Form 2-A in the District Gazette, call upon on such date or dates as may be specified therein, to convene Extraordinary General Body meetings for formation of Water Users Associations by selection or election of the members of the Territorial Constituencies, President and Vice-President of the Water Users Associations, in Irrigation Systems in accordance with the provisions of the Act, Rules and Orders made thereunder.

(b)

the notification or notifications mentioned in sub-rule (2) (a) shall specify the phases of convening Extraordinary General Body meetings, their corresponding venues and dates and the list of names of Water Users Associations covered in those phases.

(3)

Public notice by P.lection Officer. - (a) On the issue of the notification in sub-rule (2), the Election Officer shall issue public notice of the intended Extraordinary General Body meetings for the Water Users Association, in Form 3-A in Telugu language, which shall be displayed at prominent places like concerned offices of the Irrigation, Revenue, Mandal Prajaparishads and Gram Panchayats etc., with atleast (7) clear days in advance.

(b)

The public notice in sub-rule (3) (a) shall specify the date, time and venue for convening Extraordinary General Body Meeting for formation of Water Users Association by selection or election of the members of the Territorial Constituencies, President and Vice-President.

(c)

The Election Officer shall also arrange for "Tom-Tom" of the schedule date of convening Extraordinary General Body meetings in the village or villages concerned, one day before the notified date.

(4)

Public notice for casual vacancies. - For filling the casual vacancies also in Water Users Associations of Irrigation Systems, the same procedure as detailed under Rule 4.1 shall be adopted.

4.2

Schedule of Extraordinary General Body Meeting. - (1) The following shall be the one day schedule (Table 4-1) for formation of Water Users Associations by selection or election to the members of the Territorial Constituencies, President and Vice-President of Water Users Associations in all Irrigation Systems:

(Ref Rule 4.2(1))

Table 4.1 - Schedule-for selection or election
of Territorial constituency members, President and Vice-President
in all Irrigation Systems

Item

Timings

(a)

Starting time for convening of Extraordinary
General Body meeting for selecting the Territorial Constituency
members

8:00 a.m.

(b)

Cut-off time for allowing voters into the venue
and guiding them to sit Territorial Constituency-wise

9:00 a.m.

(c)

Explaining to the voters the main objects of
Water Users Associations and the need to identify their
Territorial Constituency members through consensus

9.00 a.m. to

9.45 a.m.

(d)

Where there is no consensus, to find out voters choice of selection through either show of hands or through voting slips and making arrangements accordingly.

(e)

Receipt of nominations from the contestants for the post of members of Territorial Constituencies.

9.45 a.m. to 10.15 a.m.

(f)

Scrutiny of nominations and declaration of final list of contestants (Territorial Constituency -wise) in Telugu Alphabetical order.

10.15 a.m. to 10.30 a.m.

(g)

Conducting the process of selecting the Territorial Constituency members

10.30 a.m. to

1.30 p.m.

(h)

Counting of voting slips immediately after completion of process and declaration of results (Territorial Constituency wise)

(i)

Special Managing Committee meeting for electing President and Vice- President (see Rule 4.12)

3.00 p.m. to 5.00 p.m.

Note. - In exigencies, The Election Officer can change the timings marginally after item (e) provided that the entire process is completed on the same day.

(2)

All the eligible voters of concerned Water Users Association shall assemble at the notified place on a notified date and time as specified in public notice issued by the Election Officer.

(3)

Members of the Territorial Constituencies of Water Users Associations shall be selected by the eligible voters of the respective Territorial Constituencies, in an Extraordinary General Body meeting convened by the Election Officer, as per schedule in sub-rule (1).

(4)

The President and Vice-President of Water Users Associations shall be elected by the Territorial Constituency members, in a Special meeting convened immediately for the purpose, by the Election Officer, as per Schedule in sub-rule (1) and as detailed in the schedule in sub-rule (1) of 4.12.

(5)

The Election Officer shall select suitable premises for all the eligible voters to sit in the Territorial Constituency wise Extraordinary General Body Meetings. The Election Officer may arrange to erect temporary structure or structures (like shamiana) for the purpose, if necessary.

(6)

The selection of Territorial Constituency member either through consensus (or) by show of hands (or) finally by distribution of voting slips shall be completed in a single day irrespective of the number of voters present in the General Body Meeting.

(7)

Simultaneously conducting of elections to the President and Vice-President of the Water Users Association shall also be

completed in the same day itself.

4.3

Right to vote. - (1) Every person whose name is entered in the voters list of a Territorial Constituency shall be entitled to select his representative in that particular Territorial Constituency;

(2)

No farmer shall have right to select his representative in more than one Territorial Constituency of the same Water Users Association;

(3)

No person shall have any right to vote in the same Territorial Constituency more than once; notwithstanding the fact that his name might have been registered in that voters list more than once, erroneously;

(4)

All voters who are entitled to participate in the process of selecting their representatives shall do so in person as per the time schedule at the venue provided for them under these Rules.

4.4

Extraordinary General Body Meeting. -(1) An Extraordinary General Body Meeting shall be convened by the Election Officer as per the time schedule at the venue notified and the voters shall be asked to assemble Territorial Constituency wise for selecting their representatives. This process shall be done simultaneously for all the Territorial Constituencies of the Water Users Association in the same premises and within the same time schedule. The venue selected for this purpose should be sufficient enough to accommodate all the voters in a Territorial Constituency and also all the Territorial Constituencies in that Water Users Association. The voters shall be requested to assemble Territorial Constituency wise in the halls or in rooms or places separately provided in the same premises with the same time schedule.

(2)

Keeping in view of the spirit of the Act, Election Officers and Polling Officers shall, in the first instance, explain to the voters that the Water Users Associations are formed with the sole object of serving all the farmers in their ayacut upto tail end with effective distribution of water for irrigation. To achieve this objective, the voters should be encouraged to find their representatives who serve them by providing dynamic and active leadership in this regard. It is, therefore, desirable that the Farmers Organisation be formed through mutual understanding with a spirit of self-help and co-operation. So it is in their own interest to find their representatives by consensus.

(3)

The selection of the Territorial Constituency members in Irrigation Systems shall be held in the Territorial Constituency wise Extraordinary General Body Meeting of the Water Users Association as per the time schedule at the venues notified.

(4)

At the appointed time, the Polling Officer shall inform the voters assembled the intention of convening the Extraordinary General Body meeting and the procedure to be followed for selecting the Territorial Constituency members.

(5)

There shall not be any restrictions of quorum for the meeting convened for this purpose.

(6)

Every eligible voter present in the meeting has a right to nominate himself/herself as a candidate for the post of member of the Territorial Constituency provided he/she produces no dues certificate of water tax from Revenue authorities.

(7)

The contesting candidate to the post of member of Territorial Constituency of a Water Users Association and his proposer shall be the persons whose names are registered in the current voters list of that Territorial Constituency.

(8)

In a Territorial Constituency of a Water Users Association, where the land holder is only one, the sole land holder is deemed to have been selected as a member of that Territorial Constituency.

(9)

If there is no consensus, the selection of Territorial Constituency member shall be through show of hands

(10)

If the process of selection by show of hands is not acceptable to the voters present, the selection of their Territorial

Constituency member shall be finally through distribution of voting slips.

(11)

If the selection of the member could not succeed in any of the constituency through any of the above three methods, the District Collector may exercise the powers under the proviso sub-section (5) of Section 4 of the Act which specifies that the Water Users Association member of that constituency identified by the District Collector or any of the officer notified by the District Collector shall exercise the powers and perform the functions of the Managing Committee member of that constituency under transitional arrangements.

(12)

The voters who wish to contest for any post in Farmers Organisation shall have no dues of water tax payable to Government. The contesting candidates who are in the fray shall produce no due certificate of water tax from the concerned Revenue authorities before submitting their nominations.

4.5

Procedure for selection of Territorial Constituency members. - The selection of me Territorial Constituency members in Irrigation Systems shall be held in the Territorial constituency wise Extraordinary General Body Meeting of the Water Users Association as per the time schedule at the venues notified:

(1)

Selection through Consensus. - (a) The Polling Officer shall speak out loudly the options for selection of their representative and the procedure to be followed by the voters in the first instance and explain the need for selecting their leader through consensus. If the voters present agree to select their representative to Territorial Constituency through consensus, the Polling Officer shall obtain the nomination form in Form-4 from the person so selected duly acknowledge the same in Form-5 and enter the name in the Register with the signatures of the candidate and proposer present in the meeting under the signature of the Polling Officer.

(b)

Then the Election Officer shall announce the result by declaring the name of the candidate so selected by consensus as Territorial Constituency member in Form 9-A and issue the Certificate of selection in Form-10.

4.6

Steps to be taken by the Polling Officer, if no consensus arrived. - If there is no consensus arrived in any of the Territorial Constituency, the Polling Officer shall immediately take the following steps:

(1)

The Polling Officer shall then invite nominations in Form 4 from the candidates desirous of contesting for the post of member of Territorial Constituency and enter the names in the Register.

(2)

The filled in nomination form signed by the candidate shall be handed over to the Polling Officer and receipt obtained in Form 5. Each contesting candidate shall be proposed by one eligible voter from that Territorial constituency. The contesting candidate shall sign the declaration in the nomination form.

(3)

The Polling Officer shall prepare the list of contestants in Form 6 and read out loudly, the names and other particulars of the nominations received.

(4)

The Polling Officer shall scrutinise the particulars of nominations with the voters list and satisfy himself of the eligibility of the voter to contest. Nominations of ineligible candidates shall be rejected and the names of such nominees shall be announced accordingly in the meeting by Polling Officer and recorded in Form 6.

(5)

The Polling Officer may, admit such other persons as he thinks fit to assist him for scrutiny of nominations.

(6)

The Polling Officer shall examine the nomination forms and shall decide on objections which may be made by any candidate or his proposer in respect of any nominations at the time of scrutiny and may either on such objection or on his own notion after summary enquiry as he thinks necessary, reject any nomination on any of the following grounds, viz:

(a)

that the candidate is ineligible for selection as a member of Territorial Constituency of Water Users Association under

Section 14 of the Act; or

(b)

that the name of the candidate or of his proposer or both are not registered in the current voters list; or

Provided that the nomination of a candidate shall not be rejected merely on the ground of an incorrect description of his name or of the name of his proposer, or of any other particulars relating to the candidate or his proposer as entered in the voters list, if the identity of the candidate or proposer, as the case may be, is otherwise established before the Polling Officer beyond reasonable doubt.

(7)

The Polling Officer shall endorse on each nomination form his decision of accepting or rejecting the same. If the nomination form is rejected, he shall record in writing, a brief statement of his reasons for such rejection in Form 4.

(8)

The scrutiny shall, as far as practicable, be completed within the time appointed in this behalf and no adjournment of the proceedings shall ordinarily be permissible except to provide an opportunity to a candidate to rebut any contention raised against his candidature.

(9)

At the end of appointed time, the Polling Officer shall announce name or names of contesting candidates left in the fray for the post of member of Territorial Constituency and record it in Form 7 and shall be signed by the Polling Officer after satisfying himself of the nomination.

For the purpose of this Rule, a certified copy of an entry in the voters list in force shall be conclusive evidence of the fact that the person referred to in that entry is eligible to participate in the selection of that Territorial Constituency, unless it is proved that he is subject to any disqualification mentioned in the Act.

(10)

After completion of scrutiny of nominations, the Polling Officer shall announce loudly the name or names of the contestants left in the fray for the post of Territory Constituency, arrange the names of the contestants in Telugu alphabetical order assign serial numbers to them and take their signatures in the Register. The names of the contestants with their serial numbers so finalised shall be written on the Board for clear view of the voters present.

4.7

Opt for selection through show of hands or through voting slips. - Then the voters shall be asked to opt for selection of their representative either through show of hands or through voting slips:

(1)

Selection through show of hands. - (a) If the selection is by show of hands, the Polling Officer shall count or cause to count the number of voters in favour of each contesting candidate. To avoid confusion in counting of show of hands the Polling Officer may adopt the procedure of segregation. The Polling Officer shall announce the name of the first contestant as per the final list of contesting candidates arranged in Telugu Alphabetical order.

(b)

Then the Polling Officer shall request the voters to rise their right hands as per their choice for the contesting candidate for Serial Number 1 and start counting in favour of that candidate and the total count in his support shall be entered into the Register under the signature of the Polling Officer, obtain candidate's signature and simultaneously written on the Board. Then the voters who expressed their choice in favour of contestant at Serial Number 1, shall be requested to leave the hall. The contestant of the Serial Number 1 shall not leave the hall.

(c)

The second name in the list shall be announced by the Polling Officer to know the voters choice for this contestant. The voters who are in favour of second contestant shall rise their right hands and after being counted they shall leave the hall. The contestant of the Serial Number 2 shall not leave the hall.

(d)

This process shall be continued to know the choice of the remaining voters in respect of remaining contestants.

(e)

As and when the counting is done, it shall immediately be entered in Form 8 against the name of the corresponding contestant as well as in the Register and submit to the Election Officer.

(f)

The signature of the contestant shall be obtained against his name in the Register and in case the contestant concerned

is not present or refuses to sign, then the Polling Officer shall authenticate such entry with his signature.

(g)

Then the Election Officer shall announce the result by declaring the name of the contestant who secured the highest number of count as selected for the post of that Territorial Constituency and record the particulars in Form 9-A.

(h)

Once the counting of votes and declaration of successful candidates in all the Territorial Constituencies is completed, the Election Officer shall record the list of candidates elected in Form 9-B.

(i)

The Election Officer shall issue the certificate of election to the successful candidate in Form 10 immediately on the same day and obtain acknowledgement.

If their choice of election is through distribution of voting slips, preparation of voting slips and use of a voting box to receive voting slips is required and the detailed procedure in this choice is given below:

(2)

Selection through distribution of voting slips:

(a)

Voting Box. - The Polling Officer shall also keep ready a voting box to receive the voting slips placed by the voters after marking the serial number of the contestant of their choice. The container can be of card board or plastic basket or any such suitable receptacle having sufficient space to accommodate all the voting slips distributed to the voters. The Polling Officer at the beginning of the process shall show to the voters present that the voting box is empty.

(b)

Preparation of voting slips and distribution

(i)

When the selection is through distribution of voting slips, the Polling Officer shall prepare the voting slips only to the extent of the actual number of voters present in the Extraordinary General Body Territorial Constituency wise meeting. The voting slips distributed to the voters shall be of one fourth (1/4th) of standard A4 size paper (i.e., approximately of 10.5 cm x 14.8 cm size). Each voting slip distributed to the voters shall contain Rubber stamp showing the name of the Water Users Association and number of the Territorial Constituency and blank space for signature of the Polling Officer on one side of it and the other side shall be left blank. The blank side of the slip is meant for marking the serial number of the contestant as per the choice of the voter.

(ii)

The voters shall be requested to sit in rows to mark the serial number of the contestant of their choice for selection of their representative with separate row/ rows for women voters. The Polling Officer shall sign on the voting slip in the space provided in the rubber stamp and simultaneously mark the serial number of the voting slip. After completing this process of preparation of the voting slips to the exact number of voters present, the Polling Officer shall shuffle the voting slips before distribution to the voters to ensure that the voters are not given voting slips serially.

(c)

The Polling Assistants allocated as per the rows shall distribute the voting slips to the voters of their rows. The voters shall mark the serial number of the contesting candidates with blue or black ballpoint pen on the blank side of the slip as per their choice and fold it twice-once vertically and then horizontally in such a way that the marked choice of the farmer is inside the voting slip for ensuring secrecy and place the slip in the container kept on the table of the Polling Officer.

4.8

Counting of voting slips. - (1) After all the voters complete this process of marking and placing in the voting box, the Polling Officer shall segregate the voting slips contestant wise with the assistance of the Polling Assistants and count the voting slips contestant-wise, enter them in the Register and also on the Board simultaneously.

(2)

After counting of all voting slips in that Territorial Constituency is completed, the Polling Officer shall make the entries in a result sheet in Form 8 and submit to the Election Officer.

(3)

Then the Election Officer shall announce the result by declaring the name of the contestant who secured the highest number of votes as selected for the post of that Territorial Constituency and record the particulars in Form 9-A.

4.9

Declaration of results. - Once the counting of votes and declaration of successful contestants in all the Territorial Constituencies is completed, the Election Officer shall record the list of candidates selected in Form 9-B (Territorial Constituency-wise) and exhibit it on notice board at the Venue.

4.10

Issue of certificate of election. - After declaration of successful candidates in each Territorial Constituency either uncontested or after a contest, certificate of election shall be issued by the Election Officer to each of such elected candidate in Form 10 on the same day and the acknowledgement obtained in the Register.

Election of President of Water Users Association

4.11

Special meeting for electing the President and Vice-President of Water Users Association. - A special meeting of the elected members of the Territorial Constituencies of Water Users Association shall be held by the Election Officer to elect the President and Vice-President.

(1)

All the selected members of Territorial Constituencies shall be present at the venue of election at the appointed time, as scheduled by the Election Officer, after the declaration of the results of Territorial Constituency members of the Water Users Association, for electing the President and Vice-President;

(2)

For effective distribution of water covering the entire ayacut within the Water Users Association, it is necessary to have the two important functionaries viz, the President and Vice-President elected from two different reaches i.e., Upper Reach and Lower Reach of the Water Users Association. This will ensure that the farmers from Lower reaches have their representative in decision making role to safeguard their interests. To achieve the above objective, the following steps shall be taken.

(a)

The District Collector after delineating the Territorial Constituencies based on hydraulic basis shall also demarcate half of them as the Territorial Constituencies in Upper reach and the remaining half of them as the Territorial Constituencies of Lower reach, based on their proximity to the water source and notify them accordingly.

(b)

The Election Officer shall receive the nominations from the contesting candidates for the post of President from among the Territorial Constituency members selected for the Water Users Association. Any Territorial Constituency member may submit his nomination for the post of the President irrespective of his being from the Upper reach or the Lower reach.

(c)

The Election Officer shall, in the first instance, explain to the Territorial Constituency members the necessity and advantages in selecting their representatives as President and Vice-President by consensus. When there is no consensus, the Election Officer shall conduct the election and declare the candidate who secured the support of the highest number of Territorial Constituency members as the President.

(d)

The Election Officer shall invite nominations for the post of Vice-President from the Territorial Constituency members of Lower reach, if the President is elected from the Upper reach and vice-versa so as to ensure that a Water Users Association shall have the President and Vice-President representing from both the reaches and accordingly conduct election and declare the results.

(3)

Even if some of the selected members of Territorial Constituencies are not present at the venue by the appointed time, the election to the posts of President and Vice-President shall be held with the members present, as per schedule provided (duly observing quorum of) atleast 50% of the total strength of members of the Territorial Constituencies in that Water Users Association are present.

(4)

If the number of Territorial Constituency members present fall short of the quorum required at appointed time, the Election Officer shall wait at the venue for 30 minutes and if there is no change in the situation, the Election Officer shall declare the posts of President and Vice-President as casual vacancies until the elections are held for these posts under Section 15 of the Act and record in Form 9-C and the same shall be submitted to District Election Authority. If the

Territorial Constituency posts filled by selection are less than fifty percent of the total posts, the same procedure shall be followed.

(5)
Till such time, necessary transitional arrangements shall be made as per Section 4(6) of Act;

(6)
If the members of Territorial Constituencies, though present in the special meeting, fail to elect either the President or the Vice-President or both within the scheduled time, the same procedure as mentioned under sub-rule (4) shall be followed.

4.12
Election schedule. - (1) The election for the post of President and Vice-President shall be held as per the schedule (Table 4-2).

(Ref Rule 4.12(1) &

4.12(2))

Table 4.2 - Election Schedule - for President
and Vice-President of Water Users Associations in all Irrigation
Systems

Item

Timings

(a)
Special Meeting of the Managing Committee

3.00 p.m.

(b)
Receipt of nomination and announcement of
nominations received for the Post of President of Water Users
Association

3.15 p.m. to 3.30 p.m. (15 Minutes)

(c)
Final list of nominations

3.30 p.m. to 3.45 p.m. (15 Minutes)

(d)
Election, if necessary

3.45 p.m. to

4.15 p.m. (30 Minutes)

(e)
Counting and declaration of results of President

(f)
Receipt of Nominations for the Post of
Vice-President of Water Users Association

4.15 p.m. to 4.30 p.m. (15 Minutes)

(s)
Final list of Nominations

4.40 p.m.

(h)
Election, if necessary

4.40 p.m. to

5.00 p.m.

(i)
Counting and declaration of Results of
Vice-President

(2)
In exigencies The Election Officer can marginally change the timings provided as in sub-rule (1) but the entire process

shall be completed on the same day.

(3)

The election process for the post of Vice-President shall commence only after the election to the President is completed and result declared.

4.13

Election procedure. - (1) The Election Officer before commencement of election shall inform the members of the Territorial Constituencies present, the names of the contesting candidates, as per Form 7.

(2)

The election of President of Water Users Association may be through one of the following three methods as per the choice of the Territorial Constituency members present:

(a)

Through consensus.

(b)

Through show of hands.

(c)

Through voting slips.

(3)

The Election Officer shall ascertain the opinion of the Territorial Constituency members present in respect their choice of electing the President and shall follow one of the above three methods as agreed upon by the majority of the members present.

(a)

If the choice of the Territorial Constituency members for selection of President is through consensus, the procedure in sub-rule (1) of Rule 4.5 shall be followed.

4.14

Result of candidate through consensus. - (1) If there is only one validly nominated candidate left, the Election Officer shall forthwith declare him as having been elected for the post of President in Form 9-A and issue the election certificate in Form 10.

(2)

If the number of candidates left in the fray is more than one, the election shall be held as per the schedule given above.

4.15

Election process for the post of President and Vice-President. - At the appointed time, the Election Officer shall inform the Territorial Constituency members assembled that the election process to be followed for electing the President and Vice-President is same as the selection of Territorial Constituency members.

4.16

Nomination of candidates. - (1) All the Territorial Constituency members elected are eligible for contesting for the post of President or Vice-President of a Water Users Association.

(2)

The filled in nomination form in Form 4 shall be filed with the Election Officer.

(3)

On receiving each nomination form, the Election Officer, shall forthwith number the nomination form serially in the order of the receipt and acknowledge the same in Form 5.

4.17

List of nominations received. - The list of candidates who have filed their nominations for the post of President shall be announced by the Election Officer to all the voters present in the meeting and record the same in Form 6 as well as in the Register.

4.18

Scrutiny of nominations. - The Election Officer shall scrutinize the nomination forms received and decide the eligibility or otherwise of the candidate and record the same in the nomination form.

4.19

Final list of contesting candidates. - The Election Officer shall record the names of the candidates left in the contest, in Telugu language in alphabetical order in Form 7 duly assigning the serial number and announce the same in the

meeting.

(a)

If the choice of the Territorial Constituency members for selection of President is through show of hands, the procedure in sub-rule (1) of Rule 4.7 shall be followed. However, the Territorial Constituency members present need not leave the hall during the process of segregation contestant wise.

(b)

If the choice of the Territorial Constituency members for selection of President is through distribution of voting slips, the procedure in sub-rule (2) of Rule 4.7 shall be followed.

If choice of the Territorial Constituency members present is for election through distribution of voting slips, a voting box to receive the voting slips has to be used.

(a)

The Election Officer shall prepare the voting slips to the exact number of Territorial Constituency members present in the meeting for electing the President and Vice-President.

(b)

The voting box for receiving the voting slips shall be placed on the table of the Election Officer, in full view of the contesting candidates and the Election Officer shall demonstrate to the contesting candidates and the members present, that the voting box is empty before commencement of the special meeting.

On the reverse of every voting slip before issuing to a voter, the following shall be affixed:

(a)

Name of Water Users Association.

(b)

Signature of the Election Officer.

The members of the Territorial Constituency shall mark the serial number of the contesting candidate of their choice on the blank side of the voting slip with a blue or black ball point pen and fold it twice-once vertically and then horizontally in a such way that the marked choice of the Territorial Constituency member is inside the voting slip for ensuring secrecy and place the slip in the voting box kept on the table of the Election Officer, one by one.

4.20

Counting of voting slips. - The Election Officer, after all the Territorial Constituency members exercised their choice will count or cause to count the number of votes received to each of the contesting candidate in a Water Users Association and record the same in Form 8 and in the Register also. The signature of the candidate shall be obtained against his name in the Register and in case the candidate concerned is not present or he refuses to sign, then the Election Officer shall authenticate such entry with his signature.

4.21

Declaration of results and issue of Election Certificate. - (1) The Candidate who secured the highest number of votes shall be declared elected for the post of President of the Water Users Association by the Election Officer and record in Form 9-A.

(2)

The Election Officer shall issue the certificate of election to the successful candidate in Form 10 immediately on the same day and obtain acknowledgement.

Election of Vice-President of Water Users Association

4.22

Election procedure. - (1) For the election of Vice-President, the procedure detailed in the election of the President, shall be followed in the same sequence and schedule in this chapter subject to the condition that the Vice-President shall be from Lower Reach if the President is from Upper Reach of the Water Users Association and vice versa as detailed in sub-rule (2) of Rule No.4.11 to ensure proper representation to both Upper and Lower reaches in the posts of President and Vice-President and also subject to the condition that the Territorial Constituency member elected as President of the Water Users Association shall not be eligible to contest for the post of Vice-President.

Chapters 5 Elections to the Distributory Committees General

5.1

Extraordinary General Body Meeting for electing the President and Vice-President of Distributory Committees. - (1) All the Presidents of the Water Users Associations under the jurisdiction of the concerned Distributory Committees in Major

Irrigation Systems shall constitute the General Body of Distributory Committees. The President and Vice-President of Distributory Committees shall be selected or elected during the Extraordinary General Body meeting convened for the purpose of constituting Distributory Committees on expiration of the term of the Distributory Committees or on vacation of such office or offices either by death, resignation, recall or for any other reasons.

(2)

The election to the post of President and Vice-President of a Distributory Committee in a Major Irrigation Project shall be conducted in an Extraordinary General Body meeting notified by the Election Authority as per the time schedule and venue fixed.

(3)

No Extraordinary General Body meeting for the conduct of election to the post of the President and Vice-President of a Distributory Committee, shall be held, unless minimum fifty percent of the total members of the Distributory Committee, who are entitled to vote at the election are present.

Explanation. - Where the strength of the members of the Managing Committee of the Distributory Committee is an odd number, for the purpose of reckoning the fifty percent strength, it shall be rounded off to the next higher number.

(4)

If the required quorum is not achieved for the first special meeting to elect the President and Vice-President of the Distributory Committee or if the members present failed to elect the President or Vice-President or both though the quorum is fulfilled, a second and final meeting shall be held after a clear gap of three days from the date of the first meeting.

(5)

If the required quorum is not achieved even in the second and final meeting also or if the members present failed to elect the President or Vice-President or both though the quorum is fulfilled, the Election Officer shall declare the posts of President or Vice-President or both, as the case may be, as casual vacancies until the elections are held for these posts under Section 15 of the Act and record in Form 9-C and the same shall be submitted to District Election Authority.

(6)

Till such time, necessary transitional arrangements shall be made as per Section 6(2) of the Act Only such of the members of the Managing Committee of the Distributory Committee having right to vote shall be allowed for this meeting.

Important note. - The rules contained in Chapter 2 shall form part and parcel of this Chapter to the extent they are relevant.

5.2

Public Notice of convening Extraordinary General Body meetings for formation of Distributory Committees:

(1)

Public notice by Election Authority. - The Election Authority shall, subject to such directions as may be issued by the Government in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications publish in Form 1-B, in the Andhra Pradesh Gazette, call upon, on such date or dates as may be specified therein, to convene Extraordinary General Body meetings for formation of Distributory Committees by selection or election of the President and Vice-President of Distributory Committees in Major Irrigation System in accordance with the provisions of the Act, Rules and Orders made thereunder.

(2)

Public Notice by District Election Authority. - The District Election Authority shall, subject to such directions as may be issued by the Election Authority in pursuance of and in consonance with provisions of Act in this behalf, by notification or notifications publish in Form 2-B in the District Gazette call upon on such date or dates as may be specified therein to convene Extraordinary General Body meetings for formation of Distributory Committees by selection or election of the President and Vice-President of the Distributory Committees in Irrigation System in accordance with the provisions of the Act, Rules and Orders made thereunder.

(3)

The notification or notifications mentioned in sub-rule (2) shall specify the phases of convening Extraordinary General Body meetings, their corresponding venues and dates and the list of names of Distributory Committees covered in those phases.

(4)

Public Notice by Election Officer. - On issue of notification in sub-rule (2), the Election Officer shall issue public notice of the intended Extraordinary General Body meetings for the Distributory Committees in Form 3-B for the selection or election of the President and Vice-President of the Distributory Committee and shall display it in Telugu language at the prominent places like concerned offices of the Irrigation, Revenue, Mandal Prajaparishads and Gram Panchayats etc.,

(5)

The public notice shall be sent by the Election Officer to all the members of Managing Committee of Distributory Committee (i.e.) to all Presidents of Water Users Associations under the jurisdiction of that Distributory Committee, with three clear days in advance of the date of election and get their acknowledgement.

(6)

The public notice shall specify the place, date of Extraordinary General Body meeting and time schedule for filing nominations, scrutiny of nominations, counting of votes, etc.

(7)

For filling the casual vacancies in the Distributory Committees of Major Irrigation System also, the procedure as detailed above shall be adopted.

5.3

Election schedule. - (1) The following shall be the time schedule (Table 5-1) for selection or election to the post of President of Distributory Committee in Major Irrigation System.

(Ref Rule 5.3)

Table 5-1 - Election Schedule for President of
Distributory Committee in Major Irrigation System
Item

Timings

(a)

Commencement of Extraordinary General Body
meeting

9.00 a.m.

(b)

Explain to the voters the main objects of Water
Users Association system and need to identify their leader
through consensus

9.00 a.m. to

9.30 a.m. (30 Minutes)

(c)

When there is no consensus, to find out voters
choice either through show of hands or through voting slips

(d)

Receipt of nominations for the Post of President

9.30 a.m. to

(e)

Scrutiny and announcement of Final list of
nominations,

9.45 a.m. (15 Minutes)

(f)

Election process, if necessary

9.45 a.m. to

10.30 a.m.

(g)

Counting and declaration of results of President

(2)

Election to the post of Vice-President shall be taken up immediately after the completion of election to the post of the President The candidate elected as President shall not be eligible to contest for die post of Vice-President. The following

is the time schedule (Table 5-2) for election to the post of Vice-President of the Distributory Committee in Major Irrigation System.

(Ref Rule 5.3 (2),

5.3(3))

Table 5.2 - Election Schedule -for

Vice-President of Distributory Committee in Major Irrigation

System

Item

Timings

(a)

Commencement of meeting for election of

Vice-President

11.00 a.m.

(b)

Explain to the voters the main objects of Water

Users Association system and need to identify their leader

through consensus

11.00 a.m. to

11.30 a.m. (30 Minutes)

(c)

When there is no consensus, to find out voters

choice either through show of hands or through voting slips

(d)

Receipt of nominations for the Post of

Vice-President 11.30 a.m. to

(e)

Scrutiny and announcement of Final list of

nominations,

11.45 a.m. (15 Minutes)

(f)

Election process, if necessary

11.45 a.m. to

12.30 p.m. (45 Minutes)

(g)

Counting and declaration of results of

Vice-President

In exigencies, The Election Officer can change the timings marginally as mentioned in sub-rule (1) and sub-rule (2), provided that the entire election process to the post of President and Vice-President shall be completed on the same day.

5.4

Eligibility for participation in Extraordinary General Body meeting. - (1) The Election Officer for satisfying himself of the eligibility of the candidate shall verify the original certificate of election of the candidate as President of the Water User Association under the concerned Distributory Committee.

(2)

The Election Officer shall scrutinize the nomination forms and decide the eligibility or otherwise of the candidate and record the same on the nomination form taking in account the objection raised by the other contestants, if any, into account.

(3)

They shall not be arrears of water tax payable to Government as on the date of convening Extraordinary General Body meeting in respect of contestants for the post of President or Vice-President of Distributory Committee.

5.5

Procedure for election of President of Distributory Committee. - The procedure for election of President of Distributory Committee in Irrigation Systems shall be held in the Extraordinary General Body Meeting of Distributory Committee as per the time schedule at the venues notified. The election of President of Distributory Committee is by consensus or through show of hands or through voting slips as per the choice of the voters present in the General Body meeting.

Selection through Consensus

(a)

The Election Officer shall speak out loudly the options for election of their representative and the procedure to be followed by the voters in the first instance and explain to the voters the necessity and advantages in electing their representatives through consensus. If the voters present agree to elect their representative to the President of Distributory Committee through consensus, the Election Officer shall obtain the nomination form in Form 4 from the person so selected and enter the name in the Register with the signatures of the candidate and proposer present in the meeting under the signature of the Election Officer. The Election Officer shall then make entries in a result sheet in Form 8.

(b)

Then the Election Officer shall announce the result by declaring the name of the candidate so elected by consensus as the President of Distributory Committee in Form 9-A and issue the Certificate of Selection in Form 10.

(c)

If there is no consensus arrived, the Election Officer shall immediately take the following steps:

(i)

Receive nominations form in Form 4 from the contesting candidates and enter their names in the Register.

(ii)

The filled in nomination form signed by the contesting candidates shall be acknowledged by the Election Officer in Form 5.

(iii)

Prepare the list of contestants in Form 6 and read out loudly.

(iv)

After completion of receipt of nominations, the Election Officer shall arrange the names of the contestants in Telugu alphabetical order, assign serial numbers to them and take their signatures in the Register. The names of the contestants with their serial numbers so finalised shall be written on the Board for clear view of the voters present and also record in Form 7.

5.6

Opt for selection through show of hands or through voting slips. - Then the voters shall be asked to opt for selection of their representative either through show of hands or through voting slips:

(1)

Selection through show of hands. - (a) If the election is by show of hands, the Election Officer shall count or cause to count the number of voters in favour of each contesting candidate. The Election Officer shall announce the name of the first contestant as per the final list of contesting candidates arranged in Telugu alphabetical order.

(b)

Then the Election Officer shall request the voters to rise their right hands as per their choice for the contesting candidate for Serial Number 1 and start counting in favour of that candidate and the total count in his support shall be entered into the Register under the signature of the Election Officer, obtain candidate's signature and simultaneously written on the Board.

(c)

The second name in the list shall be announced by the Election Officer to know the voters choice for this contestant. The voters who are in favour of second contestant shall rise their right hands and the count shall be entered in the Register.

(d)

This process shall be continued to know the choice of the remaining voters in respect of remaining contestants.

(e)

After counting of all voters has been completed, the Election Officer shall make the entries in a result sheet in Form 8.

(f)

The signature of the contestants shall be obtained against their names in the Register, and in case any contestant

leaves the venue without signing or refuses to sign, then the Election Officer shall authenticate such entry with his signature.

(g)

Then the Election Officer shall announce the result by declaring the name of the contestant who secured the highest number of count as selected for the post of President and record the particulars in Form - 9A and issue the Certificate of Selection in Form - 10.

If their choice of election is through distribution of slips, preparation of voting slips and use of a voting box to receive voting slips is required and the detailed procedure in this choice is given below:

(2)

Selection through distribution of voting slips

(a)

Voting box. - The Election Officer shall also keep ready a voting box to receive the voting slips placed by the voters after marking the serial number of the contestant of their choice. The voting box can be of card board or plastic basket or any such suitable receptacle having sufficient space to accommodate all the voting slips distributed to the voters. The Election Officer at the beginning of the process shall show to the voters present that the voting box is empty.

(b)

Preparation of voting slips and distribution. - When the election is through distribution of voting slips, the Election Officer shall prepare the voting slips only to the extent of the actual number of voters present in the Extraordinary General Body meeting. The voting slips distributed to the voters shall be of one fourth (1/4th) of standard A4 size paper (i.e., approximately of 10.5 cm x 14.8 cm size). Each voting slip distributed to the voters shall contain Rubber stamp showing the name of the Distributory Committee and blank space for signature of the Election Officer on one side of it and the other side shall be left blank. The blank side of the slip is meant for marking the serial number of the contestant as per the choice of the voters.

(c)

The voters shall be requested to mark the serial number of the contestant of their choice for election of their representative. The Election Officer shall sign on the voting slip in the space provided in the rubber stamp and simultaneously mark the serial number of the voting slip. After completing this process of preparation of the voting slips to the exact number of voters present, the Election Officer shall shuffle the voting slips before distribution to the voters to ensure that the voters are not given voting slips serially.

(d)

The Election Officer shall distribute the voting slips to the voters. The voters shall mark the serial number of the contesting candidates of their choice with blue or black ballpoint pen on the blank side of the voting slip and fold it twice i.e., once vertically and then horizontally in such a way that the marked choice of the voters is inside the voting slip for ensuring secrecy and place the voting slip in the voting box kept on the table of the Election Officer.

5.7

Declaration of results

(1)

The candidate who secured the highest number of votes shall be declared elected for the post of President of Distributory Committee, by the Election Officer and record the same in the Register, display on the notice board and send signed copies to the District Election Authority and Election Authority in Form-9A.

(2)

The Election Officer shall issue the certificate of election to the successful candidate in Form-10 on the same day and obtain the acknowledgement.

Election of Vice-President

5.8

Election procedure. - For the election of the Vice-President of the Distributory Committee, the procedure detailed in this chapter for the election of the President shall be followed in the same sequence, subject to the condition that the candidate elected as President of the Distributory Committee shall not be eligible to contest for the post of the Vice-President of Distributory Committee.

Chapter 6

Elections to the Project Committees

General

6.

1. Extraordinary General Body Meeting for electing the Chairman and Vice-Chairman of Project Committees

(1)

All the Presidents of the Distributory Committees under the jurisdiction of the concerned Project Committees in Major and Medium Irrigation Systems shall constitute the General Body of Project Committees. The Chairman and Vice-Chairman of the Project Committees shall be selected or elected during the Extraordinary General Body meeting convened for the purpose of constituting Project Committees on expiration of the term of the Project Committees or on vacation of such office or offices either by death, resignation, recall or for any other reasons.

(2)

The election to the post of Chairman and Vice-Chairman of a Project Committee in Major and Medium Irrigation Projects shall be conducted in an Extraordinary General Body meeting notified by the Election Authority as per the time schedule and venue fixed.

(3)

No Extraordinary General Body meeting for the conduct of election to the post of the Chairman and Vice-Chairman of a Project Committee in Major and Medium Irrigation Projects, shall be held, unless minimum fifty percent of the total members of the Project Committee, who are entitled to vote at the election are present.

Explanation. - Where the strength of the members of the Managing Committee of the Project Committee is an odd number, for the purpose of reckoning the fifty percent strength, it shall be rounded off to the next higher number.

(4)

If the required quorum is not present for the first special meeting for the election of the Chairman and Vice-Chairman of the Project Committee or if the members present failed to elect the Chairman or Vice-Chairman or both though the quorum is fulfilled, a second and final meeting shall be held after a clear gap of three days from the date of the first meeting.

(5)

If the required quorum is not achieved even in the second and final meeting also or if the members present failed to elect the Chairman or Vice - Chairman or both though the quorum is fulfilled, the Election Officer shall declare the posts of the Chairman or Vice - Chairman or both, as casual vacancies until the elections are held for these posts under Section 15 of the Act and record in Form-9C and the same shall be submitted to District Election Authority.

(6)

Till such time, necessary transitional arrangements shall be made as per Section 8 (2) of the Act.

Only such of the members of the Managing Committee of the Project Committee having right to vote shall be allowed for this meeting.

Important note. - The rules contained in Chapter-2 shall form part and parcel of this Chapter to the extent they are relevant to Project Committees.

6.2

Public Notice of convening Extraordinary General Body meetings for formation of Project Committees

(1)

The Election Authority shall, subject to such directions as may be issued by the Government in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications publish in Form-1C, in the Andhra Pradesh Gazette, call upon, on such date or dates as may be specified therein, to convene Extraordinary General Body meetings for formation of Project Committees by selection or election of the Chairman and Vice-Chairman of Project Committees in Major and Medium Irrigation Systems in accordance with the provisions of the Act, Rules and Orders made there under.

(2)

Public Notice by District Election Authority. - The District Election Authority shall, subject to such directions as may be issued by the Election Authority in pursuance of and in consonance with provisions of Act in this behalf, by notification or notifications publish in Form-2C in the District Gazette call upon on such date or dates as may be specified therein to convene Extraordinary General Body meetings for formation of Project Committees by selection or election of the Chairman and Vice-Chairman of Project Committees in Major and Medium Irrigation Systems in accordance with the provisions of the Act, Rules and Orders made there under.

(3)

The notification or notifications mentioned in Sub-rule (2) shall specify the phases of convening Extraordinary General Body meetings, their corresponding venues and dates and the list of names of Project Committees covered in those phases.

(4)

Public Notice by Election Officer. - On issue of notification in sub-rule (2), the Election Officer shall issue public notice of the intended Extraordinary General Body meetings for the Project Committees in Form-3C for the selection or election of the Chairman and Vice-Chairman of the Project Committee in Major and Medium Irrigation Systems and shall display it in Telugu language at the prominent places like concerned offices of the Irrigation, Revenue, Mandal Prajaparisads and Gram Panchayats etc.,

(5)

The public notice shall be sent by the Election Officer to all the members of Managing Committee of Project Committee (i.e.) to all Presidents of Distributory Committees under the jurisdiction of the Project Committee, with three clear days in advance of the date of election and obtain their acknowledgement.

(6)

The public notice shall specify the place, date of Extraordinary General Body meeting and time schedule for filing nominations, scrutiny of nominations, counting etc.

(7)

For filling the casual vacancies in the Project Committees of Major and Medium System also, the procedure as detailed above shall be adopted.

6.3

Election schedule

(1)

The following shall be the time schedule (Table 6-1) for selection or election to the post of Chairman of a Project Committee in Major and Medium Irrigation Systems.

(Ref Rule 6.3 (1))

Table 6-1 - Election Schedule -for Chairman
of a Project Committee in Major and Medium Irrigation Systems

Item

Timings

(a)

Commencement of Extraordinary General Body
meeting

9.00 AM

(b)

Explain to the voters the main objects of Water
Users Association system and need to identify their leader
through consensus

9.00 AM 9. 30 AM (30 Minutes)

(c)

When there is no consensus, to find out voters
choice either through show of hands or through voting slips

(d)

Receipt of nominations for the Post of Chairman

9.30Am to 9.45AM (15 Minutes)

(e)

Scrutiny and announcement of Final list of
nominations.

(f)

Election process, if necessary

9.45AM to 10.30AM

(g)

Counting and declaration of results of Chairman

(2)

Election to the post of Vice-Chairman shall be taken up immediately after the completion of election to the post of the Chairman. The candidate elected as Chairman shall not be eligible to contest for the post of Vice-Chairman. The following is the time schedule (Table 6-2) for election to the post of Vice-Chairman of the Project Committee.

(Ref Rule 6.3 (2),

6.3(3))

Table 6.2 - Election Schedule -for

Vice-Chairman of a Project Committee in Major and Medium
Irrigation Systems

Item

Timings

(a)

Commencement of meeting for election of

Vice-Chairman

11.00 AM

(b)

Explain to the voters the main objects of Water

Users Association system and need to identify their leader
through consensus

11.00 AM to 11.30 AM (30 Minutes)

(c)

When there is no consensus, to find out voters

choice either through show of hands or through voting slips

(d)

Receipt of nominations for the Post of

Vice-Chairman

11.30AM to 11.45 AM (15 Minutes)

(e)

Scrutiny and announcement of Final list of
nominations.

(f)

Election process, if necessary

11.45AM to 12.30PM (45 Minutes)

(g)

Counting and declaration of results of

Vice-Chairman

(3)

In exigencies, The Election Officer can change the timings marginally as mentioned in sub-rule (1) and sub-rule (2), provided that the entire process for the election to the post of Chairman and Vice- Chairman shall be completed on the same day.

6.4

Eligibility for participation in Extraordinary General Body meeting.

(1)

The Election Officer for satisfying himself of the eligibility of the candidate shall verify the original certificate of election of the candidate as President of the Distributory Committee under the concerned Project Committee.

(2)

The Election Officer shall scrutinize the nomination forms and decide the eligibility or otherwise of the candidate and record the same on the nomination form taking in account the objection raised by the other contestants, if any, into account.

(3)

They shall not be arrears of water tax payable to Government as on the date of convening Extraordinary General Body meeting in respect of contestants for the post of Chairman or Vice-Chairman of Project Committee.

6.5

Procedure for election of Chairman of Project Committee. - The procedure for election of Chairman of Project Committee in Irrigation Systems shall be held in the Extraordinary General Body Meeting of Project Committee as per the time schedule at the venues notified. The election of Chairman of Project Committee is by consensus or through show of hands or through voting slips as per the choice of the voters present in the General Body meeting.

1. Selection through Consensus

(a)

The Election Officer shall speak out loudly the options for election of their representative and the procedure to be followed by the voters in the first instance and explain to the voters the necessity and advantages in electing their representatives through consensus. If the voters present agree to elect their representative to the Chairman of Project Committee through consensus, the Election Officer shall obtain the nomination form in Form-4 from the person so selected and enter the name in the Register with the signatures of the candidate and proposer present in the meeting under the signature of the Election Officer. The Election Officer shall then make entries in a result sheet in Form - 8.

(b)

Then the Election Officer shall announce the result by declaring the name of the candidate so elected by consensus as the President of Distributory Committee in Form - 9A and issue to Certificate of election in Form - 10.

(c)

If there is no consensus arrived, the Election Officer shall immediately take the following steps:

(i)

Receive nominations form in Form - 4 from the contesting candidates and enter their names in the Register.

(ii)

The filled in nomination form signed by the contesting candidates shall be acknowledged by the Election Officer in Form - 5.

(iii)

Prepare the list of contestants in Form - 6 and read out loudly.

(iv)

After completion of receipt of nominations, the Election Officer shall arrange the names of the contestants in Telugu alphabetical order, assign serial numbers to them and take their signatures in the Register. The names of the contestants with their serial numbers so finalised shall be written on the Board for clear view of the voters present and also record in Form - 7.

6.6

Opt for selection through show of hands or through voting slips. - Then the voters shall be asked to opt for selection of their representative either through show of hands or through voting slips:

1. Selection through show of hands

(a)

If the election is by show of hands, the Election Officer shall count or cause to count the number of voters in favour of each contesting candidate. The Election Officer shall announce the name of the first contestant as per the final list of contesting candidates arranged in Telugu Alphabetical order.

(b)

Then the Election Officer shall request the voters to rise their right hands as per their choice for the contesting candidate for serial number 1 and start counting in favour of that candidate and the total count in his support shall be entered into the Register under the signature of the Election Officer, obtain candidate's signature and simultaneously written on the Board.

(c)

The second name in the list shall be announced by the Election Officer to know the voters choice for this contestant. The voters who are in favour of second contestant shall rise their right hands and the count shall be entered in the Register.

(d)

This process shall be continued to know the choice of the remaining voters in respect of remaining contestants.

(e)

After counting of all voters has been completed, the Election Officer shall make the entries in a result sheet in Form - 8.

(f)

The signature of the contestants shall be obtained against their names in the Register, and in case any contestant leaves the venue without signing or refuses to sign, then the Election Officer shall authenticate such entry with his signature.

(g)

Then the Election Officer shall announce the result by declaring the name of the contestant who secured the highest number of count as selected for the post of President and record the particulars in Form - 9A and issue to Certificate of election in Form - 10.

If their choice of election is through distribution of slips, preparation of voting slips and use of a voting box to receive voting slips is required and the detailed procedure in this choice is given below:

2. Selection through distribution of voting slips

(a)

Voting box. - The Election Officer shall also keep ready a voting box to receive the voting slips placed by the voters after marking the serial number of the contestant of their choice. The voting box can be of card board or plastic basket or any such suitable receptacle having sufficient space to accommodate all the voting slips distributed to the voters. The Election Officer at the beginning of the process shall show to the voters present that the voting box is empty.

(b)

Preparation of voting slips and distribution. - When the election is through distribution of voting slips, the Election Officer shall prepare the voting slips only to the extent of the actual number of voters present in the Extraordinary General Body meeting. The voting slips distributed to the voters shall be of one fourth (1 /4th) of standard A4 size paper (i.e., approximately of 10.5 cm x 14.8 cm size). Each voting slip distributed to the voters shall contain Rubber stamp showing the name of the Project Committee and blank space for signature of the Election Officer on one side of it and the other side shall be left blank. The blank side of the slip is meant for marking the serial number of the contestant as per the choice of the voters.

(c)

The voters shall be requested to mark the serial number of the contestant of their choice for election of their representative. The Election Officer shall sign on the voting slip in the space provided in the rubber stamp and simultaneously mark the serial number of the voting slip. After completing this process of preparation of the voting slips to the exact number of voters present, the Election Officer shall shuffle the voting slips before distribution to the voters to ensure that the voters are not given voting slips serially.

(d)

The Election Officer shall distribute the voting slips to the voters. The voters shall mark the serial number of the contesting candidates of their choice with blue or black ballpoint pen on the blank side of the voting slip and fold it twice i.e., once vertically and then horizontally in such a way that the marked choice of the voters is inside the voting slip for ensuring secrecy and place the voting slip in the voting box kept on the table of the Election Officer.

6.7

Declaration of results

(1)

The candidate who secured the highest number of votes shall be declared elected for the post of Chairman of Project Committee, by the Election Officer and record the same in the Register, display on the notice board and send signed copies to the District Election Authority and Election Authority in Form-9A.

(2)

The Election Officer shall issue the certificate of election to the successful candidate in Form-10 on the same day and obtain the acknowledgement.

Election of Vice- Chairman

6.8

Election procedure. - For the election of the Vice- Chairman of the Project Committee, the procedure detailed in this chapter for the election of the Chairman shall be followed in the same sequence, subject to the condition that the candidate elected as Chairman of the Project Committee shall not be eligible to contest for the post of the

Vice-Chairman of Project Committee.

Chapter 7

Discipline and Offences at Venues of Extraordinary General Body meetings

7.

1. Admission to the place of scrutiny

(1)

The Election Officer shall allow the contesting candidates or their proposers at the time of scrutiny of nomination forms.

(2)

He may allow such other persons as he thinks necessary to assist him in scrutiny of nominations including Assistant Election Officers.

(3)

No other persons shall be entitled to be present during the scrutiny of nominations

7.2

Admission to the place of Venue

(1)

The Polling Officer shall see that the election is conducted fairly and peacefully and to that end keep order at the venue and the following persons are only admitted to the place of Venue.

(a)

all the farmers having right to vote.

(b)

the police and other public servants on duty;

(c)

Polling Assistants and such persons as the polling officer may from time to time, admit for the purpose of identifying voters;

(d)

persons authorized by the Government or Election Authority or District Election Authority;

(e)

a child in arms or a child accompanying a voter; and

(f)

a person accompanying a blind (or) infirm voter who cannot move without help.

(2)

Where a woman voters cannot be identified by the identifying officers by reason of her observing purdah, she may be required to be identified by any of her near relatives unless she otherwise proves her identity before the polling officer.

Explanation. - If a question arises as to whether a person is or is not a near relative within the meaning of this sub-rule, it shall be decided by the polling officer and his decision shall be final.

7.3

Offence of preparing false list of voters. - Any officer in charge of preparation of voters list, who knowingly prepares or makes an entry in the list of person qualified to be registered in the list as voters for a Territorial Constituency which is false shall be punishable under Law.

7.4

Poll persons influencing voting. - (1) An Election Officer or an Assistant Election Officer or a Polling Officer or Polling Assistant or any other persons performing any duty in connection with an election shall not conduct in any manner which helps in the furtherance of the prospects of the elections of any candidate or candidates.

(2)

No such person as aforesaid and no member of police force shall endeavour to;

(a)

persuade any person to give his consent or vote in an election; or

(b)

dissuade any person from giving his consent or vote at an election; or

(c)

influence the voting of any person at an election in any manner;

(3)

Any person who contravenes the provisions of sub-rule (1) and sub-rule (2) shall be punishable under Law.

7.5

Breach of official duty in connection with elections. - The Election Officers, Assistant Election Officers, Polling Officers, Polling Assistants and any other persons appointed to perform any duty in connection with the preparation of the list of voters or receipt of nominations or recording or counting of votes at an election shall not act or cause to act in breach of his official duty which is punishable under Law.

7.6

Misconduct at the Venue

(1)

Any person, who during the hours fixed for the Extraordinary General Body Meeting, at any Venue misconducts himself or fails to obey the lawful directions of the Election Officer or Polling Officer may be removed from the Venue, by the Election Officer or Polling Officer or by any police personnel on duty or by any person authorized in this behalf, by such Election Officer.

(2)

The powers conferred by sub-rule (1) shall not be exercised so as to prevent any voter who is otherwise entitled to vote at a Venue from having an opportunity of voting at that station.

(3)

Any person who has been removed from a Venue, under sub-rule (1), if re-enters the Venue without the permission of the Election Officer, he shall be punishable under the Law.

(4)

An offence punishable under sub-rule (3) shall be cognizable.

7.7

Disorderly conduct in or near Venue

(1)

No person shall, on the date or dates, on which a Extraordinary General Body Meeting is being conducted, at any venue

(a)

use or operate within or at the entrance of the venue or in any public or private place in the neighbourhood thereof, any apparatus for amplifying or reproducing the human voice, such as a megaphone or a loud speaker or

(b)

shout or otherwise act in disorderly manner, within or at the entrance of the venue or in any public or private place in the neighbourhood thereof, so as to cause annoyance to any person attending the Extraordinary General Body Meeting, or so as to interfere with the work of the officers and other persons on duty at the venue.

(2)

Any person who contravenes or wilfully aids or abets the contravention of the provisions of sub-rule (1) punishable under Law.

(3)

If the Election Officer or Polling Officer has reason to believe that any person is committing or has committed an offence punishable under this Rule, he may direct any police personnel to arrest such person and thereupon the police personnel shall arrest him immediately and handover to the Station House Officer with a complaint signed by Polling Officer in Form-12

(4)

Any police personnel may take such steps and use such force, as may be reasonably necessary for preventing any contravention of the provisions of sub-rule (1) and may seize any apparatus used for such contravention.

7.8

Making false declaration. - If a person makes a declaration in or in connection with any nomination of a candidate for election or any statement in writing which is false, shall be punishable under the Law.

7.9

Other offences. - (1) A person shall be guilty of an offence, if at any election he:

(a)

fraudulently defaces or fraudulently destroys or removes

- (i)
any nomination paper; or
- (ii)
any list, notice; or
- (iii)
other document affixed by or under the authority of an Election Officer; Polling Officer; or
- (iv)
any voting slip or any declaration of identity
- (b)
without the due authority supplies any voting slip to any person; or
- (c)
fraudulently puts into the voting box anything, other than the voting slip; or
- (d)
without due authority destroys, takes, opens or otherwise interferes with any voting box or voting slip then in use, for the purpose of the election; or
- (e)
fraudulently or without authority, as the case may be, attempts to do any of the foregoing acts or wilfully aids or abets the doing of any such acts.

(2)
Any person guilty of an electoral offence under this Rule shall be punishable under Law.

(3)
An offence punishable under this Rule shall be cognizable.

7.10
Prohibition of public meeting on the day of Extraordinary General Body Meeting. - (1) No person shall convene, hold or attend any public meeting, on the date or dates on which a Extraordinary General Body Meeting is taken for selection / election in the Jurisdiction of the Farmers Organisation.

(2)
Any person who contravenes the provisions of sub-rule (1) shall be punishable under Law.

7.11
Prohibition of canvassing in or near Venue of Extraordinary General Body Meeting. - (1) No person shall, on the date or dates on which a Extraordinary General Body Meeting is conducted at any venue, commit any of the following acts within the venue or in any public or private place within a distance of one hundred metres radius of the venue, namely:

- (a)
canvassing for votes; or
- (b)
soliciting the vote of any contestant; or
- (c)
persuading any elector not to vote for any particular candidate; or
- (d)
persuading any elector not to vote at the election; or
- (e)
exhibiting any notice or sign, other than an official notice relating to the election.

(2)
Any person who contravenes the provisions of sub-rule (1) shall be punishable under Law.

(3)
The Election Officer and the Polling Officer shall ensure that no canvassing is done in any form as given in sub-rule (1) and in such cases of occurrence; he shall immediately instruct the police personnel on duty to act to stop or prevent such activities forthwith.

(4)
An offence punishable under this Rule shall be cognizable.

Chapter 8

Settlement of Election disputes

8.

1. Limitation for presentation of election petition. - Save as otherwise provided, no election held under the Act, whether of a member of Territorial Constituency or President or Vice-President of a Water Users Association ; President or Vice-President of Distributory Committee, or Chairman or Vice-Chairman of the Project Committee shall be called in question except by an election petition presented in accordance with these Rules to the Election Tribunal as defined in Rule 8.2 by any candidate or voters against the candidate who has been declared to have been duly elected (hereinafter called the returned candidate or if there are two or more returned candidates against all or any such candidates).

8.2

The Election Tribunal. - (1) For a Water Users Association,

The Junior Civil Judge, if there is more than one Junior Civil Judge, the Senior Civil Judge, having territorial Jurisdiction over the place in which the office of the Water Users Association is located, in respect of the election of the members of the Territorial Constituencies and President and Vice-President of the Water Users Association.

(2)

For a Distributory Committee,

The Senior Civil Judge or if there is more than one Senior Civil Judge, the Principal District Judge, having territorial Jurisdiction over the place in which the office of the Distributory Committee is located in respect of the election disputes and matters pertaining to the election of President and Vice-President of the Distributory Committee.

(3)

For a Project Committee,

The Principal District Judge, having territorial jurisdiction over the place in which the office of the Project Committee is located, in respect of the election disputes and matters pertaining to the election of Chairman and Vice-chairman of the Project Committee.

Explanation. - An Election Tribunal exercising jurisdiction under these Rules shall be deemed to exercise such jurisdiction as a personal designation and not in his capacity as a Judge.

8.3

Limitation of time. - The election petition shall be presented within thirty days from the date of the declaration of the result of the election.

Explanation. - (a) If the Election Tribunal is closed on the last day of the thirty days aforesaid, the petition may be presented to the Election Tribunal on the immediate next working day.

(b)

The petition shall contain a statement in concise form, the material facts on which the petitioner relies and the particulars of any election offences which he alleges and shall, where necessary, be divided into paragraphs numbered consecutively.

(c)

It shall be signed by the petitioner and verified in the manner prescribed for the verification of pleadings in the Code of Civil Procedure, 1908 (Central Act 8 of 1908)

8.4

Joinder of parties. - (1) If the irregularities alleged in the petition are likely to affect the validity of the election of more than one returned candidate, the petitioner shall join as respondents to his petition all such returned candidates.

(2)

The petitioner may, if he so desires, in addition to calling in question the election of the returned candidates or of all or any of the returned candidates, as the case may be, claim a declaration that he himself or any other candidate has been duly elected, in which case he shall join as respondents to his petition all other candidates who were selected or elected by election process.

8.5

Security deposit. - At the time of presentation of the petition, the petitioner shall deposit with it Rs. 10,000/- (Rupees ten thousand only) as security for the costs of the same.

Explanation. - (a) Where the election of more than one returned candidate is called in question, a separate deposit shall be made in respect of each such returned candidate.

(b)

If the provisions of this Rule are not complied with, the Election Tribunal shall dismiss the petition.

(c)

Upon compliance with the provisions of this Rule, the Election tribunal shall proceed to enquire into the petition.

8.6

Copies of the petition to be served. - (1) The Election Tribunal shall, as soon as may be, cause a copy of the petition to be served on each respondent and on the concerned District Election Authority.

(2)

Copies shall also be affixed to the notice board of the Election Tribunal and of the office of the Water Users Association, the Distributory Committee or the Project Committee concerned.

(3)

The Election Tribunal may also call on the petition to execute a bond for such amount and with such sureties as the Tribunal may require for the payment of any further costs. At any time within fourteen days after such service or affixing, any other candidate shall be entitled to be joined as a respondent on furnishing such security as may be demanded by the Election Tribunal.

8.7

Election Tribunal to enquire. - (1) Every election petition shall be enquired into, by the Election Tribunal, as early as may be, in accordance with the procedure applicable under the Code of Civil Procedure, 1908 (Central Act 8 of 1908) for the trial of suits.

Provided that it shall only be necessary for the Election Tribunal to make a memorandum of the substance of evidence of any witness examined by it.

(2)

The Election Tribunal shall have the powers which are vested in a court under the Code of Civil Procedure, 1908 when trying a suit, in respect of the following matters namely:

(a)

discovery and inspection;

(b)

enforcing the attendance of witnesses and requiring the deposit of their expenses;

(c)

compelling the production documents;

(d)

examining witnesses on oath;

(e)

reception of evidence taken on affidavit; and

(f)

issuing commissions for examination of witnesses, and summons to examine witnesses suo motu whose evidence appears to be material.

8.8

Withdrawal of election petition. - (1) No election petition shall be withdrawn without the leave of the Election Tribunal.

(2)

If there are more petitioners than one, no application to withdraw a petition shall be made except with the consent of all the petitioners.

(3)

When an application for withdrawal is made, notice thereof fixing a date for hearing of the application shall be given to all other parties to the petition and shall be published in the manner specified in Rule 8.6.

(4)

No application for withdrawal shall be granted, if the Election Tribunal is of the opinion that such application has been induced by any bargain or consideration which, they consider ought not to be allowed.

(5)

If the application is granted,

(a)

The petitioner shall be ordered to pay the costs of the respondents incurred or such portion thereof as the Election

Tribunal may think fit; and

(b)

Such withdrawal shall be communicated to the competent authority concerned with the Water Users Association, Distributory Committee or the Project Committee, as the case may be, and to the District Election Authority concerned by the Election Tribunal.

8.9

Execution of the order of costs. - Any order made by the Election Tribunal as to the costs of the enquiry may be executed in the same manner as if it was a case of arrears of Land Revenue; and be recovered in accordance with the provisions of the Andhra Pradesh Revenue Recovery Act, 1864 and be remitted to the party in whose favour it is ordered by the Election Tribunal.

8.10

Abatement of election petition. - An election petition shall abate on the death of a sole petitioner or of the survivor of several petitioners; and such abatement shall be communicated to the competent authority of Water Users Association, the Distributory Committee or the Project Committee, as the case may be, and the concerned District Election Authority by the Election Tribunal.

8.11

Election offences. - (1) If in the opinion of the Election Tribunal

(a)

that on the date of his election, a returned candidate was not qualified, or was disqualified, to be chosen to fill the seat under the Act or Rules;

(b)

that any election offence as defined in Chapter IX-A of the Indian Penal Code, 1860 has been committed by a returned candidate; or

(c)

that any nomination has been improperly rejected; or

(d)

that the result of the election, in so far as it concerns a returned candidate has been materially affected: -

(i)

by the improper acceptance of any nomination; or

(ii)

by any election offence committed in the interest of the returned candidate by an agent, with the connivance of the returned candidates; or

(iii)

by the improper reception, refusal or rejection of any vote, or the reception of any vote which is void; or

(iv)

by any non compliance with the provisions of the Act, or any Rules or Orders made under the Act; the Election Tribunal shall declare the election of the returned candidate to be void.

(2)

If the Election Tribunal holds the returned candidate guilty under clause (1) (b) and clause 1(d) (ii) of this Rule, the Election Tribunal shall, in addition to declaring the election of the returned candidate as void, shall also declare that the returned candidate shall be disqualified to contest in any elections under this Act, for a period of six years from the date of the order.

8.12

Petitioner to prove his election. - If any person who has lodged a petition, has in addition to calling in question, the election of the returned candidate claimed declaration that he himself, or any other candidate, has been duly elected the Tribunal is of the opinion:

(a)

that in fact, the petitioner or such other candidate, received the majority of the valid votes, or

(b)

that, but for the votes obtained by the returned candidate, by election offences, the petitioner or such other candidate would have obtained a majority of the valid votes;

the Election Tribunal shall, after declaring the election of the returned candidate to be void, declare the petitioner or such other candidate, as the case may be, to have been duly elected.

8.13

Disqualification for voting. - Any person disqualified by decision of the Election Tribunal under Rule 8.12 for any period shall be disqualified for the same period for voting in any election under the Act.

8.14

Declaration by the Tribunal - (1) At the conclusion of the enquiry, the Election Tribunal shall declare whether the election of the returned candidate or candidates is void under Rule 8.12 and Rule 8.13.

(2)

If Election Tribunal declares the election of the returned candidate or candidates void he shall further pass an order either.

(a)

declaring that any other party to the petition who has under these Rules claimed the seat has been duly elected; or

(b)

order a fresh election.

(3)

The order of the Election Tribunal under sub-rule (1) and sub-rule (2) shall be final.

(4)

A copy of every order under sub-rule (1) or sub-rule (2) shall be communicated to the competent authority of the Water Users Association, the Distributory Committee and the Project Committee as the cases may be, and the concerned District Election Authority.

Form 1A

Government of Andhra Pradesh Water Resources Department

Public Notice for convening Extra-ordinary General Body Meeting for formation of Water Users Associations

Public Notice for selections /elections to the posts of members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations in Irrigation Systems.

(See Section 4 of the Act)

(1)

In exercise of the Powers conferred under Rule 4.1(1) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules, 2003 amended upto 2018, it is hereby notified that:

(2)

Extra-ordinary General Body Meeting for formation of Water Users Association to fill the posts of members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations under all Irrigation Systems (Major, Medium and Minor) in Andhra Pradesh, shall be conducted during the period from/.. /20.... to/.../20.....

(3)

The exact date or dates for conducting the Extra-ordinary General Body Meeting for formation of the individual Water Users Association shall be notified by the respective District Election Authorities.

Station:

Signature.....

Date: /.../20....

Full

name.....(in capitals)(Election Authority)

Form -2A

Government of Andhra Pradesh Water Resources Department

Public Notice for convening Extra-ordinary General Body Meeting for formation of Water Users Associations

Public Notice for selections /elections to the posts of members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations in Irrigation Systems.

(See Section 4 of the Act)

In exercise of the powers conferred under Rule 4.1(2) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rule 2003, amended upto 2018 and in pursuance of the Public Notice issued by the Election Authority vide.....District Gazette Notification no..... dated it is hereby notified that the

Extra-ordinary General Body Meeting for formation of Water Users Associations to fill the posts of members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations in Irrigation Systems i.e.. Major, Medium and Minor, indistrict shall be conducted as per the schedule given below:

of convening Extra-ordinary General Body Meeting for formation of Water Users Association in Irrigation Systems

Phase no

Date

Name of the Water Users Associations covered

Station:

Signature.....

Date: /.../20....

Full

name.....(in capitals)(District Election Authority)

.....
General instructions. - The District Election Authority according to the administrative convenience may conduct Extraordinary General Body Meeting for formation of Water Users Associations in one or more phases and the same shall be notified in this form.

Provided that the whole process shall be completed within the period stipulated by Election Authority.

Form - 3A

Government of Andhra Pradesh Water Resources Department

Public Notice for convening Extra-ordinary General Body Meeting for formation of Water Users Associations

Public Notice for selections /elections to the posts of members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations in Irrigation Systems.

(See Section 4 of the Act)

1. In exercise of the powers conferred under Rule 4.1(3) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rule 2003, amended to 2018 and in pursuance of the Public Notice issued by the District Election Authority ofdistrict vide Gazette Notification no.....dated Public Notice is hereby issued for conducting Extra-ordinary General Body Meeting for formation of Water Users Associations to fill the posts of members of Territorial Constituencies, Presidents and Vice-Presidents of.....Water Users Associations in Irrigation Systems i.e.. Major, Medium and Minor,.....village,.....Mandal,district.

2. The date of Extra-ordinary General Body Meeting is/...../20.....

3. Venue of the Extra-ordinary General Body Meeting and address is.....

of Extra-ordinary General Body Meeting in Irrigation Systems

Schedule -for selection or election of

Territorial constituency members, President and Vice- President

of Water Users Associations in all Irrigation Systems

Item

Timings

a

Starting time for convening of Extraordinary

General Body meeting for selecting the Territorial Constituency members

8:00 AM

b

Cut-off time for allowing voters into the hall

or pandal and guiding them to sit Territorial Constituency - wise

9:00 AM

c.

Explaining to the voters the main objects of

WUAs and the need to identify their TC members through consensus

9.00AM to 9.15AM

d

Where there is no consensus, to find out voters choice of selection through either show of hands or through voting slips and making arrangements accordingly.

9.15AM to 9.45AM

e

Receipt of nominations from the contestants for the post of members of Territorial Constituencies.

9.45 AM TO 10.15

f

Scrutiny of nominations and declaration of final list of contestants (Territorial Constituency -wise) in Telugu Alphabetical order.

10.15 AM to 10.30 AM

g

Conducting the process of selecting the Territorial Constituency members

10.30

h

Counting of voting slips immediately after completion of process and declaration of results (Territorial Constituency wise)

1.00 PM

i

Special Managing Committee meeting for electing President and Vice-President (see Rule 4.12)

3.00PM to 5.00PM

Station:

Signature.....

Date: /.../20....

Full

name.....(in capitals)(Election Officer)

Form - 1B

Government of Andhra Pradesh Water Resources Department

Public Notice for convening Extra-ordinary General Body Meeting for formation of Distributory Committees

Public Notice for elections to the posts of Presidents and Vice-Presidents of Distributory Committees in Major Irrigation Systems.

(See Section 6 of the Act)

(1)

In exercise of the powers conferred under Rule 5.2(1) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules, 2003 amended to 2018, it is hereby notified that:

(2)

Extra-ordinary General Body Meeting for formation of Distributory Committees to fill the posts of Presidents and Vice-Presidents under Major Irrigation Systems in Andhra Pradesh, shall be conducted during the period from/.../20....to/...../20....

(3)

The exact date or dates for conducting the Extra-ordinary General Body Meeting for formation of Distributory Committees shall be notified by the respective District Election Authorities.

Station:

Signature.....

Date: /.../20....

Full

name.....(in capitals)(Election Authority)

Form - 2B

Government of Andhra Pradesh Water Resources Department

Public Notice for convening Extra-ordinary General Body Meeting for formation of Distributory Committees

Public Notice for elections to the posts of Presidents and Vice-Presidents of Distributory Committees in Major Irrigation Systems.

(See Section 6 of the Act)

In exercise of the powers conferred under Rule 5.2(2) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rule 2003, amended upto 2018 and in pursuance of the Public Notice issued by the Election Authority vide.....District Gazette Notification no.....dated.....it is hereby notified that the Extra-ordinary General Body Meeting to fill the posts of Presidents and Vice-Presidents of Distributory Committees in Major Irrigation Systems, indistrict shall be conducted as per the schedule given below:

of convening Extra-ordinary General Body Meeting for formation of Distributory Committees in Major Irrigation Systems

Phase no

Date

Name of the Distributory Committees in Major

Irrigation Systems covered

Station:

Signature.....

Date: /.../20....

Full

name.....(in capitals)(District Election Authority)

.....
General instructions. - The District Election Authority according to the administrative convenience may conduct Extraordinary General Body Meeting for formation of Distributory Committees in Major Irrigation Systems in one or more phases and the same shall be notified in this form.

Provided that the whole process shall be completed within the period stipulated by Election Authority.

Form - 3B

Government of Andhra Pradesh Water Resources Department

Public Notice for convening Extra-ordinary General Body Meeting for formation of Distributory Committees

Public Notice for elections to the posts of Presidents and Vice-Presidents of Distributory Committees in Major Irrigation Systems.

(See Section 6 of the Act)

(1)

In exercise of the powers conferred under Rule 5.2(4) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rule 2003, amended to 2018 and in pursuance of the Public Notice issued by the District Election Authority of District vide Gazette Notification no..... dated Public Notice is hereby issued for conducting Extra-ordinary General Body Meeting to fill the posts of Presidents and Vice-Presidents of Distributory Committee in Major Irrigation Systems.....district.

(2)

The date of Extra-ordinary General Body Meeting is/.../20....

(3)

Venue of the Extra-ordinary General Body Meeting and address is

of Extra-ordinary General Body Meeting

Election Schedule-for Presidentof

Distributory Committee in Major Irrigation System

Stage of Election

Timings

a.

Commencement of Extraordinary General Body meeting

9.00 AM

a.

Receipt of nomination and announcement of nominations received
for the Post of President

9.00 AM-9.15 AM (15 Minutes)

b.

Final list of nominations

9.30AM

d.

Election, if necessary

9.30AM-10.00AM (30 Minutes)

e.

Counting and declaration of results of President

10.00 AM-10.30 AM (30 Minutes)

Election Schedule -forVice-Presidentof

Distibutory Committee in Major Irrigation System
Item

Timings

a.

Receipt of nomination and announcement of
nominations received for the Post of Vice-President

11.00 AM 11.15 AM (15 Minutes)

b.

Final list of nominations

11.30AM

d.

Election, if necessary

11.30 AM-12.00 noon (30 Minutes)

e.

Counting and declaration of results of
Vice-President

12.00 noon - 12.15PM (15 Minutes)

Station:

Signature.....

Date: /.../20....

Full

name.....(in capitals)(Election Officer)

Form - 1C

Government of Andhra Pradesh Water Resources Department

Public Notice for convening Extra-ordinary General Body Meeting for formation of Project Committees

Public Notice for elections to the posts Chairman and Vice-Chairman of Project Committees in Major and Medium
Irrigation Systems.

(See Section 8 of the Act)

(1)

In exercise of the Powers conferred under Rule 6.2(1) of the Andhra Pradesh Farmers Management of Irrigation
Systems (conduct of elections) Rules, 2003 amended to 2018, it is hereby notified that:

(2)

Extra-ordinary General Body Meeting for formation of Project Committees to fill the posts Chairman and Vice-Chairman
under Major and Medium Irrigation Systems in Andhra Pradesh, shall be conducted during the period from/..20.... to
../120....

(3)

The exact date or dates for conducting the Extra-ordinary General Body Meeting for formation of Project Committees shall be notified by the respective District Election Authorities.

Station:

Signature.....

Date: /.../20....

Full

name.....(in capitals)(Election Authority)

Form-2C

Government of Andhra Pradesh Water Resources Department

Public Notice for convening Extra-ordinary General Body Meeting for formation of Project Committees

Public Notice for elections to the posts Chairman and Vice-Chairman of Project Committees in Major and Medium Irrigation Systems.

(See Section 8 of the Act)

In exercise of the powers conferred under Rule 6.2(2) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rule 2003, amended upto 2018 and in pursuance of the Public Notice issued by the Election Authority vide.....District Gazette Notification no.....dated.....it is hereby notified that the Extra-ordinary General Body Meeting to fill the posts of Chairman and Vice-Chairman of Project Committees in Major and Medium Irrigation Systems, in.....district shall be conducted as per the schedule given below:

of convening Extra-ordinary General Body Meeting for formation of Project Committees in Major and Medium Irrigation Systems

Phase no

Date

Name of the Project Committees in Major and

Medium Irrigation Systems covered

Station:

Signature.....

Date: /.../20....

Full

name.....(in capitals)(District Election Authority)

.....
General instructions. - The District Election Authority according to the administrative convenience may conduct Extraordinary General Body Meeting for formation of Project Committees in Major and Medium Irrigation Systems in one or more phases and the same shall be notified in this form.

Provided that the whole process shall be completed within the period stipulated by Election Authority.

Form - 3C

Government of Andhra Pradesh Water Resources Department

Public Notice for convening Extra-ordinary General Body Meeting for formation of Project Committees

Public Notice for elections to the posts Chairman and Vice-Chairman of Project Committees in Major and Medium Irrigation Systems.

(See Section 8 of the Act)

(1)

In exercise of the powers conferred under Rule 6.2(4) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rule 2003, amended to 2018 and in pursuance of the Public Notice issued by the District Election Authority of..... district vide Gazette Notification no..... dated..... Public Notice is hereby issued for conducting Extra-ordinary General Body Meeting to fill the posts of Chairman and Vice-Chairman of..... Project Committee in Major and Medium Irrigation Systems in district.

(2)

The date of Extra-ordinary General Body Meeting is /...../20..

(3)

Venue of the Extra-ordinary General Body Meeting and address is.....

of Extra-ordinary General Body Meeting

Election Schedule- for Chairman of a
Project Committee in Major and Medium Irrigation Systems

Item

Timings

a.

Commencement of Extraordinary General Body
meeting

9.00 AM

a.

Receipt of nomination and announcement of
nominations received for the Post of Chairman

9.00 AM to 9.15 AM (15 Minutes)

b.

Final list of nominations

9.30 AM

d.

Election, if necessary

9.30AM-10.00AM (30 Minutes)

e.

Counting and declaration of results of Chairman

10.00 AM-10.30AM (30 Minutes)

Election Schedule-for Vice-Chairman of a Project Committee

Item

Timings

a.

Receipt of nomination and announcement of
nominations received for the Post of Vice-Chairman

11.00 am -11.15 am (15 Minutes)

b.

Final list of nominations

11.30am

d.

Election, if necessary

11.30am-12.00 noon (30 Minutes)

e.

Counting and declaration of results of

Vice-Chairman

12.00 noon 12.15pm (15 Minutes)

Station:

Signature.....

Date: /.../20....

Full

name.....(in capitals)(Election Officer)

Form - 4

Nomination form

This form is issued to Sri/ Smt /

Kum.....

(candidate's name to be written by Election Officer before issue)

Formation of farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting.

(Common for all Irrigation Systems)

To

S No _____

The Election Officer,

.....

(name of the farmers organisation)1

Serial number Nomination

{|

| Of

form

|-

| (as received during EOGB)

|

|-

| I wish to contest the election for the following
post and furnish my personal details here under.

|-

| Name of the post contesting

| Irrigation system.....

|-

|

| (Name of Irrigation system) 2

|-

| Farmers

organisation.....

|-

| (Name of the farmers organisation)1

|-

| Town/village.....Mandal.....District.....

|}

1. Personal Particulars

(a)

Full name:

Sri/Smt/Kum.....

(surname)

(full

name)

(b)

Father/Husband name: Sri

.....

(surname)

(full

name)

(c) Serial No. In the voters list

(contesting

candidate)

(d) Age

Years (e)

Gender

Male

Female

(Please put tick ? mark))

(f) Occupation (g) Educational

Qualification

(h) Address of contesting candidate:

House No..... Street

No.....

Town/village.....Mandal.....District.....

2. Details of the proposer

(a) Full

name: Sri/smt /Kum

(b)

Father/Husband name :Sri

(c) Serial

No. In the voters

list (proposer)

Signature.....

(Proposer)

.....

1 Name of the WUA/DC/PC as per records

2 Name of the Irrigation system eg: major/medium/minor

irrigation

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

Form - 4

(Common for all Irrigation Systems)

3. Declaration

(by the contesting candidate)

I solemnly affirm and state as follows:

1. I am a registered voter in the current voters list at serial number.....and that my proposer is also a registered voter in the current voters list at serial number.....

2. I am years (in words.....) old as on the date of this nomination.

3. I am not a village servant or an officer or a servant of the Government of India or any state Government or a local authority or an employee of any institution receiving aid from the funds of the Government.

4. I was not convicted by a criminal court for any offence involving moral turpitude committed under any law for the time being in force.

5. I am with a sound mind and I am not an applicant to be adjudicated as an insolvent or an undischarged insolvent.

6. I am not a defaulter of land revenue or water tax or charges payable either to the Government or to the Farmers Organisation.

7. I am neither a Member of Legislative Assembly nor a Member of Parliament nor office bearer of any body constituted under law made by Legislative of State of Parliament.

8. I was not removed from any post of office bearer in the Farmers Organisation previously by the Government or the Commissioner, Command Area Development.

9. I am eligible for contesting election and I am not disqualified under any of the provisions of section 14 of the APFMIS Act, 1997.

10. I do not have children in violation of the provision in section 14 of the APFMIS Act, 1997. The above particulars furnished by me are true to the best of my knowledge and if they are found to be incorrect at any time during my tenure, I am liable for removal from the post or posts I hold in the Farmers Organisation and I shall be debarred from contesting for any post in Farmers Organisation for six years from the date of the order.

Station:

Signature.....

Date

20

(contesting candidate)

Witness1

Witness2

Signature.....

Signature.....

Full

name.....

Full

name.....

Address.....

Address.....

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

Form - 4

(Common for all Systems)

4. Scrutiny of nominations

(By the Election Officer)

1.

This nomination form is presented to me by

Sri/Smt/Kum.....

(name of the contesting

candidate/proposer)

*candidate /*proposer in person on this day of

/...../20.....at.....(AM/PM)

dd

mm

yy

2.

I have scrutinised this nomination form in

accordance with rules of election manual and the nomination is

(Decision to be written as

Accepted/Rejected in the box)

3.

The nomination is rejected for the following

reasons (if rejected)

.....

.....

.....

4.

The above information is entered in the Form-6

displayed on the notice board.

Station:

Signature.....

Date

20

Full name.....

(Election Officer)

*

Strike out whichever is not applicable

Form - 4

Election: Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Instructions to the Contesting Candidate

(Please read the following instructions carefully before filling the nomination form)

1. All particulars shall be filled in with neat handwriting and duly signed by himself and his proposer along with the declaration, and shall be submitted to the Election Officer, at the time and date appointed for the purpose.

Instructions to the Election Officer

1. After scrutiny of nomination, the Election Officer shall enter his remarks as "Accepted"/"Rejected" in the space provided (with reasons - in case of rejection).

2. The Election Officer shall modify the final list of contesting candidates displayed in the venue duly effecting, attesting the changes if any.

3. The Election Officer shall accept only one nomination form on behalf of one contesting candidate.

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

Form - 5

(Common for all Irrigation Systems)

S. No.

Receipt for
nomination

.....

(Name of the WUA/DC/PC as per
records)

The filled in
nomination form of Sri/Smt/Kum

.....

(name of the contesting
candidate)

Son/wife/daughter of

Sri

.....a candidate for

(father
or husband name)

Contesting

to the post of

is delivered to me at

(name of
the post contested)

(hour and
minutes)

on...../...../20.....

by Sri/Smt/Kum

.....

And entered at

serial number in

the list of nominations received(form-6)

Station:

Signature.....

Date

20

Full

name.....

(Election Officer)

.....cut

here.....

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

Form - 5

(Common for all Irrigation Systems)

S. No.

Receipt for
nomination

.....
(Name of the WUA/DC/PC as per
records)

The filled in
nomination form of Sri/Smt/Kum

.....
(name of the contesting
candidate)

Son/wife/daughter of

Sri

.....a candidate for

(father

or husband name)

Contesting

to the post of

was delivered to me at

(name of

the post contested)

(hour and

minutes)

on...../...../20.....

by Sri/Smt/Kum

.....
And entered at

serial number in

the list of nominations received(form-6)

Station:

Signature.....

Date

20

Full

name.....

(Election Officer)

.....cut

here.....

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

Form - 6

(Common for all Irrigation Systems)

List of nominations received

TC No

(for TC election only)

Post.....

(Name

of the post contesting)1

Farmers

Organisation.....

(name of the farmers organisation)2

Village.....
Mandal.....
District.....
Irrigation
system.....
(name of the Irrigation System)
SNo
Details of Candidate
Accepted
Rejected
(1)
(2)
(3)
(4)
Name:
Sri/Smt/Kum.....Age.....Yrs
Son/wife/daughter of
sri.....
Occupation.....S.No
in voter list.....
Address.....
Proposer:
Sri/Smt/Kum.....
S.No in voter
list.....
Name:
Sri/Smt/Kum.....Age.....Yrs
Son/wife/daughter of
sri.....
Occupation.....S.No
in voter list.....
Address.....
Proposer:
Sri/Smt/Kum.....
S.No in voter
list.....
Name:
Sri/Smt/Kum.....Age.....Yrs
Son/wife/daughter of
sri.....
Occupation.....S.No
in voter list.....
Address.....
Proposer:
Sri/Smt/Kum.....
S.No in voter
list.....
Signature.....
Date of
20
Polling

Full name.....

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

Form - 6

1. The details shall be filled in with neat hand writing in Telugu language and signed on original and duplicate, as when the nomination form is received.
2. This form shall be filled in post-wise (in case of TC members it shall be Territorial Constituency-Wise).
3. The original copy of this form shall be displayed on the notice board at the venue immediately after the closure of time fixed for the receipt of nomination forms.
4. The duplicate copies in stitched volume shall be deposited with the District Election Authority for preservation.
5. Immediately after all the nomination form have been scrutinised and the decision of accepting or rejecting the same has been recorded, the Election Officer shall write the same in the relevant column against each name in this form affixed already on the notice board at his

TC - Territorial Constituencies

DC - Distributory Committee

WUA - Water Users Association

PC - Project Committee

.....

Details of superscripts at page 1

1. Name of the post - Member, Territorial Constituency/President/Vice-President/Chairman/Vice-Chairman.
2. Name of WUA/DC/PC as per records.
3. Name of Irrigation System Major, Medium of Minor Irrigation System.

Form - 7

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

(Common for all Irrigation Systems)

Final list of contesting candidate

TC No

(for TC election only)

Post.....

(Name
of the post contesting)1

Farmers

Organisation.....

(name of the farmers organisation)2

Village.....

Mandal.....

District.....

Irrigation

system.....

(name of the Irrigation System)3

S. No

Name of the contesting candidate and
father's/husband's name

(1)

(2)

Abstract of Nominations

No of nominations received

Rejected

Accepted

Signature.....

EOGB date

20

Full name

.....

(In Capitals) (Election Officer)

.....

Details of superscripts at page 1

1. Name of the post - Member, Territorial Constituency/President/Vice-President/Chairman/Vice-Chairman.

2. Name of WUA/DC/PC as per records.

3. Name of Irrigation System Major, Medium of Minor Irrigation System.

Form- 8

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

(Common for all Irrigation Systems)

Result of Counting

(Election to the posts of Members of Territorial Constituencies, Presidents, Vice-president, Chairmen, Vice-chairmen)

.....

(name of the farmers organisation)

Post.....

(name of the post)2

Irrigation

system.....

(name of the Irrigation system) 3

Village.....

District.....

Mandal.....

Date of Counting

20

S.No

Candidate's name and father's / husband's name

S. No in Voters List

Number of valid votes cast

Nos

In words

1

2

3

4

Total valid votes cast

for details of superscripts 1,2,3 above - see overleaf

Form - 8

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

(Common for all Irrigation Systems)

Result of Counting (contd.,)

(EOGB meetings to TC Member, President, Vice-President, Chairman, Vice-Chairman)

A.

The highest number of valid votes received in

favour of the following candidate

Sri/Smt/Kum.....

(Surname)

(full name)

son /wife/ daughter of

Sri.....

(surname)

(full name)

B.

For equality of votes, lots have been drawn and
the lot has fallen in favour of

Sri/Smt/Kum.....

(surname)

(full name)

son /wife/ daughter of

Sri.....

(surname)

(full name)

Signature.....

Full name.....

(Election Officer)

* strike out, whichever is not applicable

1. Full name of the - Water Users Association / Distributory Committee / Project Committee
2. Name of the post - TC member / president / vice-president / chairman / vice-chairman.
3. Name of the irrigation system - major / medium / minor irrigation systems.

Form - 8

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting
(Common for all Irrigation Systems)

Instructions to the Election Officer

1. Immediately after voting by all the members present, the Election Officer shall take out the voting slips from the voting box and count or cause to count the valid votes received to each candidate after rejecting the invalid votes as per Rules of election manual in the presence of all the members.
2. If the equality exists between the candidates and addition of one vote will lead to any of those candidates being declared elected, the election Officer shall decide between these candidates by drawing lot and declare elected, the person in whose favour the lot has fallen and shall enter such result in this form.
3. This form shall be prepared in duplicate and the-original copy shall be displayed at the venue for general public.
4. The Election Officer shall allow the following persons at the place of counting
 - a. Contesting candidates or Proposer in case of TC member in major, medium irrigation system (only one at a time).
 - b. All polling officers who are also to participate in counting of votes.
 - c. Such persons to be known as Counting Officers and Counting Assistants as the Election Officer may appoint to assist him in the counting as may be necessary.
 - d. Persons authorised by the Government, or the Election Authority or the District Election Authority
 - e. Personnel on duty in connection with the election.

Form - 9A

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting
(Common for all Irrigation Systems)

Declaration of Results

(EOGB meetings to Territorial Constituency, President, Vice-President, Chairman, Vice-Chairman)

.....
.....

(name of the farmers organisation)1

contested

post.....Irrigation

system.....

(name of the post)2

(name of the irrigation system)3

Town/village.....Mandal.....

District.....

.... Date of counting

20

In accordance with the Rules of the Election

manual I.....

.....Election

Officer hereby declare that the following candidate has been duly
selected / elected by *consensus* /After contest, for the above
post.

*strike out, whichever

is not applicable

Signature,

.....

Full Name

.....

(Election Officer)

.....

.....

1. Name of WUA / DC / PC as per records

2. Name of the post Member, Territorial Constituency / President / Vice President / Chairman / Vice Chairman

3. Name of Irrigation System Major, Medium or Minor Irrigation System

Form - 9B

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

(Common for all Irrigation Systems)

List of Elected Candidates

Election to Members of Territorial Constituencies, Presidents, Vice-Presidents, Chairmen and Vice-Chairmen

.....

(name of the farmers organisation)

Village

.....Mandal.....

.District.....

Date of counting

20

S.No.

Name of the candidate elected

Post to which elected

1

2

3

4

5

6

7

8

9

10

11

12

Signature.....

Full name.....

(In capitals) (Election Officer)

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

(Common for all Irrigation Systems)

Form - 9B

Instructions to the Election Officer

1. The Election Officer shall fill this form soon after completing the respective elections in the Farmers Organisation on the day of election.
2. This form shall be prepared in duplicate and the original copy shall be displayed at the election office for information of the general public.
3. The duplicate copy shall be retained in the book and will in the personal custody of the designated officer in the office of District Election Authority.

Form - 9C

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

(Common for all Irrigation Systems)

Declaration of Casual Vacancies in Farmers Organisations

In exercise of the powers conferred under the *.....*.....*..... of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules 2003 updated upto 2018.

I.....the Election Officerfor the

(name of the farmers organisation)

declare the following post or posts as Casual Vacancies, because the members of the Managing Committee of the following farmers organisation have failed to elect their respective office bearer(s) in the special meeting held on/.....20..... for the following reasons.

- a. Lack of quorum (applicable to DC/PC election)
- b. Selection process is unsuccessful
- c. None of the Members turned up
- d. Only one Member turned up.
- e. The strength of elected members of TC is less than 50% of the total strength.

1. Name of the post

i.

ii

2. Name of the Farmers Organisation Village Mandel District

.....

Village.....Mandal.....District.....

Station:

Date:

20

Signature.....

Full name.....

(In capitals) (Election Officer)

.....
.....

strike out whichever is not applicable

Form -10

Government of Andhra Pradesh

Water Resources Department

Certificate of Election

I.....Election

Officer

(surname)

(full name)

On

this.....of

.....of.....

(day in words)

(month in words)

(year in words)

Declare that Sri/Smt/Kum

.....
(surname)

(full name)

Son/wife/daughter of

Sri.....

(surname)

(full name)

has been duly elected as

..... of

.....
(name of the post)

.....in.....

.....
(name of the farmers organization)

(name of the town/village)

Of.....in.....

.....
(name of the mandal)

(name of the district)

Station:

Signature.....

(Election officer)

Date:

20

Specimen signature/thumb impression ofCandidate
elected

Attested

Signature.....

(Election officer)

Form -11

(Common for all Irrigation Systems)

Annexure -1

Details of other records, voting slips other election forms in bundles

(to be filled in by collection officer and verified by the officer receiving the records)

Name of the collection officer.....

S. No.

Description of Records

Quantity

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

Handed over

Taken over

Signature.....

Signature.....

Full name.....

Full name.....

Form - 12

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting
(Common for all Irrigation Systems)

Letter of complaint to the Station House Officer

To

The Station House Officer,

.....

.....

Sub: - EOGB meeting to

.....

(name of the water user association)

Impersonation at venue

.....

(name of venue)

(number)

Date of EOGB meeting

...../20.....

Sir,

I am handing over a person, who claimed to be Sri/Smt

(Serial No..... in voters list) belonging to

(name of water users association)

..... but he could not prove himself to be this voter. In my opinion he is an impostor. I am to request you to
take necessary action as required under 171. F of the Indian Penal Code.

Yours faithfully,

Station:

Signature

.....

Date

20

Full name

.....

(Polling Officer)

.....cut

here.....

Receipt

The above letter and the person referred to therein are handed
over to me at (hour) on/

...../20..... by the Polling Officer.

Signature

.....

Full name

.....

(Station House Officer)

Form -13A

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

(Common for all Irrigation Systems)

List of Venues

In exercise of the powers conferred under Rule 1.7 of Election Manual under the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules, 2003 upto 2018, the District Election Authority.....District, hereby publish the list of venues together with the areas or groups of voters for which they have been provided in respect of

(name of the water users association)

S. No

Territorial Constituency Number

Location of venue

Serial Number of Voters as per voters list

Place

Name of Building/ Office

Village and Mandal

(1)

(2)

(3)

(4)

(5)

(6)

Any objections to the formation of above venues shall be submitted to the undersigned before 5.00 P.M. on..... /.../20 by the members/voters of the.....

(name of the water users association)

Station:

Signature.....

Date

20

Full

name.....

(in capitals) (District Election Authority)

Form -13B

Formation of Farmers Organisations of WUA/DC/PC in Extraordinary General Body Meeting

(Common for all Irrigation Systems)

Final List of Venues

(A)

* Where as the objections received against Form-13A displayed on.../.../20 Have been considered and thoroughly examined/whereas no objections are received against Form-13A. And whereas it is considered that no amendments to Form-13A are Considered necessary and therefore the venues with other Particulars already displayed in Form-13A in respect of.....are final.(name of water users association)

OR

(B)

And whereas it is considered that the amendments to Form-13A are considered necessary; and accordingly they are hereby made and revised in the table hereunder in exercise of the powers conferred under Rule 1.7 of Election Manual

under the Andhra Pradesh Farmers Management of Irrigation System (conduct of elections) Rules, 2003 upto 2018 in respect of

.....

(name of the water users association)

S. No

Territorial Constituency Number

Location of venue

Serial No as per Voters as per voters list

Place

Name of Building/ Office

Number of Voters as Village and Mandal

(1)

(2)

(3)

(4)

(5)

(6)

* strike out, whichever Is not applicable

Station:

Signature.....

Date

20

Full

name.....

(in capitals) (District Election Authority)

Related AI tags, queries and research notes

Translation